



CHAPTER xcix.

An Act to alter the constitution of the Great Yarmouth Port and Haven Commissioners to authorise the Commissioners to construct a dock and other works to acquire the fish wharf undertaking of the corporation of Great Yarmouth to acquire lands and for other purposes. A.D. 1911.
[18th August 1911.]

WHEREAS the Great Yarmouth Port and Haven Commissioners (herein-after called "the Commissioners") were incorporated by the Great Yarmouth Port and Haven Act 1866 and under the powers conferred upon them by the Great Yarmouth Port and Haven Acts 1866 to 1907 are the authority for the conservancy and improvement of the port and haven of Great Yarmouth:

And whereas it is expedient to increase the number of the Commissioners and to alter the provisions contained in the said Acts with reference to the election of Commissioners in the manner by this Act provided:

And whereas the fish traffic at Great Yarmouth has greatly increased and is increasing and in order to accommodate and to afford facilities for dealing with such traffic it is expedient that the said Commissioners be empowered to construct the dock and works by this Act authorised and to acquire the lands in this Act mentioned:

And whereas in pursuance of powers conferred upon them by the Great Yarmouth Fish Wharves Act 1866 and the Great Yarmouth Fish Wharf Order 1890 which was confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1890 the

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. mayor aldermen and burgesses of the borough of Great Yarmouth (in this Act called "the corporation") have constructed a fish wharf and landing places for fish and other works in the county borough of Great Yarmouth:

And whereas it is expedient that the fish wharf undertaking as defined in this Act should be acquired by and vested in the Commissioners upon the terms and in the manner provided by this Act and that the Commissioners should be empowered to carry on the said undertaking and to extend and improve the same in order to meet the requirements of the increasing fish traffic at Great Yarmouth and that the further powers in this Act contained should be conferred on them:

And whereas it is expedient that the Commissioners and the corporation should be empowered to enter into and carry into effect agreements for the purposes herein-after mentioned:

And whereas it is expedient that the Commissioners should be authorised to borrow further moneys for the general purposes of their undertaking and for carrying out the objects of this Act and that the corporation should be authorised to assist and contribute to the said objects as provided by this Act and to apply their funds for that purpose:

And whereas plans and sections showing the lines and levels of the dock authorised by this Act and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Norfolk and are herein-after respectively referred to as "the deposited plans sections and book of reference":

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:

PART I.

A.D. 1911.

PRELIMINARY.

1. This Act may be cited for all purposes as the Great Yarmouth Port and Haven Act 1911 and the Great Yarmouth Port and Haven Acts 1866 to 1907 and this Act may be cited together as the Great Yarmouth Port and Haven Acts 1866 to 1911.

Short and
collective
titles.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Constitution &c. of Commissioners.

Part III.—Works.

Part IV.—Lands.

Part V.—Fish wharf undertaking.

Part VI.—Tolls and charges.

Part VII.—Financial.

Part VIII.—Miscellaneous.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not varied by or inconsistent with the provisions of this Act are incorporated with and form part of this Act (that is to say):—

Incorporation of Acts.

The Lands Clauses Acts;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in the application of such provisions to the dock works by this Act authorised the term "railway" shall mean the said dock works and the expression "the centre of the railway" shall mean the said dock works and for the purposes of section 32 of the said Act the prescribed limits shall include all lands within the limits of deviation shown upon the deposited plans and within two hundred yards measured eastward and southward from those limits;

The Harbours Docks and Piers Clauses Act 1847 except sections 16 to 19 both inclusive (unless the Commissioners shall be required by the Board of Trade to provide and

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

maintain a lifeboat and tide and weather gauge) and except sections 12 25 and 26 of that Act and the expression "tackle apparel and furniture" in that Act shall for the purposes of this Act be deemed to include fishing nets and other fishing gear;

The Commissioners Clauses Act 1847 except the provisions thereof with respect to the election and rotation of Commissioners where the Commissioners are to be elected by the ratepayers or other like class of electors;

Part III. (relating to debenture stock) of the Companies Clauses Act 1863:

Provided that the provisions of the Harbours Docks and Piers Clauses Act 1847 incorporated with this Act shall so far as applicable extend and apply to the fish wharf undertaking and to any docks quays wharves and landing places by this Act authorised to be acquired by the Commissioners or for the time being belonging to them and for that purpose the expression "harbour dock or pier" in the said Act shall be deemed to include the said undertaking docks quays wharves and landing places:

Provided also that the following expressions used in the said Act shall for the purposes of this Act have the following respective meanings (that is to say):—

The expressions "packet boat" and "Post Office packet" mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression "Post Office bag of letters" means a mail bag as defined by the same Act Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Act shall extend to exempt from tolls any such vessel as aforesaid if she also conveys passengers or goods for hire.

Interpreta-
tion.

4. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

The expression "the Commissioners" means the Great Yarmouth Port and Haven Commissioners for the time

being as incorporated by the Act of 1866 or as the case may require as incorporated by that Act as amended by this Act; A.D. 1911.

The expression "the Norwich Corporation" means the lord mayor aldermen and citizens of the city and county of Norwich;

The expression "the Norfolk justices" means the justices of the peace for the county of Norfolk in quarter sessions assembled;

The expression "the Suffolk justices" means the justices of the peace for the county of Suffolk in quarter sessions assembled;

The expression "the Act of 1866" means the Great Yarmouth Port and Haven Act 1866;

The expression "the Fish Wharves Act of 1866" means the Great Yarmouth Fish Wharves Act 1866;

The expression "the Order of 1890" means the Great Yarmouth Fish Wharf Order 1890 confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1890;

The expression "the Act of 1900" means the Great Yarmouth Port and Haven Act 1900;

The expression "the Act of 1907" means the Great Yarmouth Port and Haven Act 1907;

The expression "the dock works" or "the dock" means the dock or tidal basin and entrance and the works connected therewith by this Act authorised;

The expression "the undertaking" means and includes the undertaking of the Commissioners under and by virtue of the Great Yarmouth Port and Haven Acts 1866 to 1911;

The expression "the borough" means the county borough of Great Yarmouth;

The expression "the port" means the port of Great Yarmouth as defined by section 4 of the Act of 1866;

The expression "the haven" means the haven of Great Yarmouth as defined by section 5 of the Act of 1866;

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

The expressions "the River Yare" "the River Bure" and "the River Waveney" shall respectively have the meanings ascribed to those respective expressions by section 6 of the Act of 1866;

The expression "tolls" includes all tolls rates dues rents duties and charges;

The expression "basket" includes swill ped pottle box tub trunk barrel and other like thing for holding or measuring fish;

The expression "cart" includes railway and other trucks wheel-barrows and any vehicles made or used for the conveyance of fish goods materials or things;

The expression "fish" includes shell-fish shrimps and prawns;

The expression "statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the corporation;

The expression "the fish wharf undertaking" means the fish wharves railways tramways landings stages slip-ways piers buildings and lands constructed or acquired by the corporation under the Fish Wharves Act of 1866 and the Order of 1890 and situate within the areas coloured pink on the plan signed by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred the railways or tramways constructed by the corporation under the Fish Wharves Act of 1866 and delineated by a red line on the said plan and all other the real and personal property assets and effects of whatever nature vested in or belonging to the corporation under and in pursuance of the said Act and Order at the

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

date of transfer of the said undertaking to the Commis- A.D. 1911.
sioners under the provisions of this Act so far as the said
Act and Order are not repealed by this Act (but subject
to any obligations to which the corporation shall then
be subject under the unrepealed provisions of the said
Act and Order with reference to the said undertaking)
together with the sea water mains and pipes of the
corporation within the limits of the said areas but does
not include the sewage pumping station nor electric lines
and apparatus nor any money stocks or securities ;

The expression "the existing railway" means the railways
and tramways forming part of the fish wharf under-
taking when transferred to the Commissioners in pursuance
of this Act.

PART II.

CONSTITUTION &C. OF COMMISSIONERS.

5. As from the date of the passing of this Act sections 23 Repeal of
certain sec-
tions of Act
of 1866 and
Act of 1907.
to 53 inclusive of the Act of 1866 and sections 4 and 5 of the
Act of 1907 shall be and the same are hereby repealed and in
lieu thereof the provisions of this Part of this Act shall have
effect and the Great Yarmouth Port and Haven Acts 1866 to
1911 shall be read and construed accordingly.

6. Until the close of the yearly meeting to be held on the Commis-
sioners until
25th March
1912.
twenty-fifth day of March one thousand nine hundred and twelve
the several persons who immediately before the date of the
passing of this Act were Commissioners or the survivors of them
shall be the Commissioners for executing the Great Yarmouth
Port and Haven Acts 1866 to 1911.

7. From and after the close of the yearly meeting to be Commis-
sioners on
and after
yearly meet-
ing in 1912.
held in the year one thousand nine hundred and twelve the
Commissioners for executing the Great Yarmouth Port and Haven
Acts 1866 to 1911 shall consist of nineteen persons to be appointed
or elected as follows :—

(A) Appointed—

By the corporation	-	-	-	-	Three
By the Norwich corporation	-	-	-	-	Three
By the Norfolk justices	-	-	-	-	Three
By the Suffolk justices	-	-	-	-	Three

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. (B) Elected—

By the persons registered in the ship-
owners' and tollpayers' list provided for
by this Act and for the time being
in force - - - - - Three

By the persons registered in the fish-
owners' and fish tollpayers' list provided
for by this Act and for the time being
in force - - - - - Three

By the persons registered in the yacht-
owners' list provided for by this Act
and for the time being in force - - - One

Provided always that of the Commissioners to be elected by
the persons registered in the shipowners' and tollpayers' list
as aforesaid under the provisions of this Act one shall be a
person who in the year preceding his election shall have paid
river tolls on the River Yare either by himself as a trader alone
or as a member of a trading company or copartnership and one
other shall be on the burgess roll of the borough.

General
qualification
of Com-
missioners.

8.—(1) The general qualification of a Commissioner (other
than a Commissioner to be elected by registered yachtowners)
shall be that at the time of his appointment or election he be a
male person of full age and that he be seised or possessed in
his own right of real or personal estate or both to the value of
one thousand pounds at least or that his name appears in the
shipowners' and tollpayers' list or the fishowners' and fish toll-
payers' list provided for by this Act and for the time being in
force as a registered owner whether as part owner or sole
owner or both of a vessel or vessels to the amount or aggregate
amount of two hundred tons or upwards or as a registered toll-
payer who during the year for which the list for the time being
in force shall have been made has paid tolls or a composition
in lieu thereof to the extent of fifty pounds or upwards.

(2) The qualification of a Commissioner to be elected by
registered yachtowners shall be that at the time of his election
he be a male person of full age and that his name appears in
the yachtowners' list for the time being in force as a registered
tollpayer in respect of a yacht or yachts.

Appoint-
ment of
Commis-

9. The corporation shall on or before the first day of March
in the year one thousand nine hundred and twelve and on or

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

before the same date in every third year thereafter appoint three persons respectively qualified as by this Act prescribed to be three of the Commissioners.

A.D. 1911.
—
sioners by
corporation.

10. The Norwich Corporation shall on or before the first day of March one thousand nine hundred and twelve and on or before the same date in every third year thereafter appoint three persons respectively qualified as by this Act prescribed (one at least of whom shall be a merchant trader actually carrying on business in the city and county of Norwich) to be three of the Commissioners and such Commissioners shall be called "the Norwich Commissioners."

Appoint-
ment of
Commis-
sioners by
Norwich
Corporation.

11. The Norfolk justices shall at the general quarter sessions for the county of Norfolk on or next after the first day of January in the year one thousand nine hundred and twelve and on or next after the same date in every third year thereafter appoint three persons respectively qualified as by this Act prescribed (one at least of whom shall be a merchant trader actually carrying on business in the county of Norfolk) to be three of the Commissioners and such Commissioners shall be called "the Norfolk Commissioners."

Appoint-
ment of
Commis-
sioners by
Norfolk
justices.

12. The Suffolk justices shall at the general quarter sessions for the county of Suffolk on or next after the first day of January in the year one thousand nine hundred and twelve and on or next after the same date in every third year thereafter appoint three persons respectively qualified as by this Act prescribed (one at least of whom shall be a resident at Beccles and one at least of whom shall be a merchant trader actually carrying on business in the county of Suffolk) to be three of the Commissioners and such Commissioners shall be called "the Suffolk Commissioners."

Appoint-
ment of
Commis-
sioners by
Suffolk
justices.

13. The appointment of appointed Commissioners by the corporation and the Norwich Corporation respectively shall be signified to the clerk of the Commissioners by writing under the hand of the town clerk of the borough and the town clerk of the city and county of Norwich respectively and the appointment of appointed Commissioners by the Norfolk justices and the Suffolk justices respectively shall be signified to the clerk of the Commissioners by writing under the hand of the clerk of the peace for the county of Norfolk and the clerk of the peace

Evidence of
appointment
of appointed
Commis-
sioners.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. for the county of Suffolk respectively and every such signification shall be conclusive evidence of every appointment made by each of the above respective bodies.

No appointed Commissioner shall act until the signification of his appointment shall have been received by the clerk of the Commissioners.

Collector of
tolls to make
lists of ship-
owners and
tollpayers
and fish-
owners and
fish toll-
payers.

14. The collector of tolls appointed by or under the Great Yarmouth Port and Haven Acts 1866 to 1911 shall on or before the fourteenth day of January in the year one thousand nine hundred and twelve and on or before the same date in every third year thereafter make and deliver to the clerk of the Commissioners the following lists and shall at the foot of every list sign a certificate of its accuracy (that is to say):—

(1) A list wherein shall be entered in alphabetical order the names with the residences and descriptions of all persons registered in the books of the custom house at Great Yarmouth as the owners or part owners on the thirty-first day of December then last of any vessels (other than vessels employed in catching fish and for no other purpose) registered as belonging to and trading from the port with the names and registered tonnage of the vessels and also the names with the residences and descriptions of all persons who during the year ending the thirty-first day of December then last shall in respect of vessels (other than vessels employed in catching fish and for no other purpose) or of animals or goods or both (other than fish) have paid tolls specified in the Second Third and Fifth Schedules to this Act or in all or any of such schedules to the amount in the whole of ten pounds or upwards or have paid a composition in lieu thereof to that amount or upwards in the whole and containing the amount of such tolls or composition paid by every such person and such list shall be called "the shipowners' and tollpayers' list":

(2) A list wherein shall be entered in alphabetical order the names with the residences and descriptions of all persons registered in the books of the custom house at Great Yarmouth as the owners or part owners on

the thirty-first day of December then last of any A.D. 1911.
vessels registered as belonging to and trading from
the port and employed in catching fish and for no
other purpose with the names and registered tonnage
of the vessels and also the names with the residences
and descriptions of all persons who during the year
ending the thirty-first day of December then last
shall in respect of vessels employed in catching fish
and for no other purpose or of fish landed or unloaded
sold or shipped in the haven have paid tolls specified
in the said Second Third and Fifth Schedules or in
all or any of such schedules to the amount in the
whole of ten pounds or upwards or have paid a com-
position in lieu thereof to that amount or upwards
in the whole and containing the amount of such tolls
or composition paid by every such person and such
list shall be called "the fishowners' and fish toll-
payers' list":

Provided always that subject to the provisions of this Act
for the purposes of each list for any year in all cases where
there are bills of lading the persons appearing on the bills of
lading in the case of exports as consignors and in the case of
imports as consignees paying the tolls or a composition in lieu
thereof or otherwise the person whom the payer of the tolls at
the time of paying them shall declare to be the owner of the
goods in respect of which the tolls or composition are or is paid
shall be deemed the person paying the tolls or composition
Provided also that for the purpose of making the said lists for
the year one thousand nine hundred and twelve the provisions
of this section shall be read and have effect as if the payment
of tolls specified in the First and Second Schedules to the Act
of 1907 to the amount in the whole of ten pounds or upwards
or a composition in lieu thereof to that amount or upwards in
the whole had been mentioned therein in lieu of the payment
of tolls specified in the Second Third and Fifth Schedules to
this Act of that amount or upwards in the whole or a
composition in lieu thereof to that amount or upwards in the
whole.

15. The collector of the customs of the port shall on the Collector
application of the collector of tolls and within a reasonable of customs
period thereafter produce at the custom house at Great facilities.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. Yarmouth to such collector of tolls for his inspection and transcription all such books as are proper and sufficient to enable him to make the lists provided for by the section of this Act of which the marginal note is "Collector of tolls to make lists of shipowners and tollpayers and fishowners and fish tollpayers" and shall afford to him all reasonable and proper facilities in that behalf. Provided always that such books shall only be required to be produced during the hours of official attendance of the collector of customs and upon payment of the legally authorised fee.

Collectors
of tolls to
make lists
of yacht-
owners.

16. The collector of tolls for the River Yare the collector of tolls for the River Bure and the collector of tolls for the River Waveney appointed by or under the Great Yarmouth Port and Haven Acts 1866 to 1911 shall respectively on or before the fourteenth day of January in the year one thousand nine hundred and twelve and on or before the same date in every third year thereafter make and deliver to the clerk of the Commissioners a list as in this section provided and shall at the foot of such list sign a certificate of its accuracy (that is to say):—

A list wherein shall be entered in alphabetical order the names with the residences and descriptions of all persons registered in the books of the Commissioners as the owner or part owner on the thirty-first day of December then last of any yacht (which expression where used in this Part of this Act means a pleasure boat or other vessel used exclusively for pleasure or kept for the purpose of being let lent hired or engaged exclusively for pleasure for gift pay hire or reward or promise of payment but does not include a boat propelled solely by oars) and who during the year ending on such thirty-first day of December shall have paid to the Commissioners all river tolls payable under the Great Yarmouth Port and Haven Acts 1866 to 1911 in respect of such yacht or have paid the composition for the time being payable in lieu thereof and containing the amount of such tolls or composition paid by every such person and such lists together shall be called "the yachtowners' list."

Owners of
vessels not
to be on two
lists.

17. No owner of a vessel entitled to have his name entered on the shipowners' and tollpayers' list in respect of the ownership of such vessel shall by reason of such ownership be deemed to

be an owner of a yacht entitled to have his name entered on the yachtowners' list in respect of the same vessel. A.D. 1911.

18. The registered shipowners and the registered fishing vessel owners shall respectively be entitled to votes according to the following scale (that is to say):—

Scale of
shipowners'
and fish-
owners'
votes.

Every person appearing by the respective list in force to be a registered shipowner or a registered fishing vessel owner whether as part owner or sole owner or both—

To the amount or aggregate amount of twenty-five tons or upwards but less than seventy-five tons three votes;

To the amount or aggregate amount of seventy-five tons or upwards but less than one hundred and twenty-five tons six votes;

To the amount or aggregate amount of one hundred and twenty-five tons or upwards nine votes:

And no registered shipowner or registered fishing vessel owner shall as such be entitled to more than nine votes.

19. Every person appearing by the respective list in force to be a registered tollpayer who in the year ending the thirty-first day of December one thousand nine hundred and eleven shall (otherwise than as a fish salesman agent or broker for any other person) have paid tolls specified in the First and Second Schedules to the Act of 1907 or in either or both of such schedules to an amount mentioned in this section or a composition in lieu thereof to such amount or who in the year ending the thirty-first day of December one thousand nine hundred and fourteen or in any third year thereafter shall (otherwise than as aforesaid) have paid tolls specified in the Second Third and Fifth Schedules to this Act or in all or any of such schedules to an amount mentioned in this section or a composition in lieu thereof to such amount shall in respect of the amount which he shall appear by such respective list to have so paid be entitled to votes according to the following scale (that is to say):—

Scale of
registered
tollpayers'
votes.

To the amount or aggregate amount of ten pounds or upwards but less than one hundred pounds three votes;

To the amount or aggregate amount of one hundred pounds or upwards but less than two hundred pounds six votes;

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. To the amount or aggregate amount of two hundred pounds or upwards but less than four hundred pounds nine votes;

To the amount or aggregate amount of four hundred pounds or upwards twelve votes:

And no registered tollpayer shall as such be entitled to more than twelve votes under any one list.

Scale of
registered
yachtowners'
votes.

20. The registered yachtowners shall be entitled to votes according to the following scale (that is to say):—

Every person appearing by the list in force to be a registered yachtowner of a yacht or yachts in respect of which there shall have been paid in the aggregate during the year ending the thirty-first day of December then last—

A sum of ten shillings or upwards but less than twenty shillings - - - - - One vote

A sum of twenty shillings or upwards but less than forty shillings - - - - - Two votes

A sum of forty shillings and upwards - - - - - Three votes

And no registered yachtowner shall as such be entitled to more than three votes:

Provided that for the purposes of any election by registered yachtowners previously to the year one thousand nine hundred and fifteen the several sums mentioned in this section shall be deemed to be reduced by one half.

Lists to be
printed.

21. The Commissioners shall print every list provided for by this Part of this Act with the addition to the name address and description of each person of the number of votes to which he is entitled thereunder and on every day during the seven days ending with the fourteenth day of February one thousand nine hundred and twelve and during the same period in every third year thereafter shall cause a printed copy of each such list then last made and duly certified as required by this Part of this Act to be posted on the outer door of the Commissioners' principal office for public inspection and a printed copy of each such list shall be delivered to every person applying for the same on payment of such reasonable sum as the Commissioners may determine not exceeding one shilling for each copy.

Revisor of
lists.

22. The chairman of the Commissioners or in the event of his decease or failure to act a Commissioner appointed for the

occasion by the Commissioners shall be the revisor of the lists provided for by this Part of this Act and shall during the seven days next before the twenty-first day of February one thousand nine hundred and twelve and during the same period in every third year thereafter revise at the Commissioners' principal office the lists then last made and certified giving not less than three days' public notice of his intention to revise the said lists and the revisor shall have power to call for such books and accounts of the Commissioners as he may deem necessary or proper for enabling him to revise such lists.

A.D. 1911.

23. Any person claiming to have his name inserted in any list provided for by this Part of this Act or claiming to have his number of votes increased beyond the number inserted therein may by himself or agent attend the revision to enforce his claim and any person named in any such list may object to any other person as not entitled to be named therein or as not entitled to the number of votes specified therein and the revisor shall correct the said lists as he shall find cause on consideration of the same and of the proofs adduced before him and his decision thereon shall be final and he shall sign each list when so revised and the production at any time of the list so signed shall be *prima facie* proof of its being the shipowners' and tollpayers' list or the fishowners' and fish tollpayers' list or the yachtowners' list as the case may be duly revised according to the provisions of this Act and every list so revised shall be in force until the then next list of the same sort is made revised and signed.

Lists to be revised.

24. Every revised list after the revision thereof and within not less than five days next before the poll for the election of elected Commissioners at which the same list will be in force shall be printed and printed copies thereof shall be kept at the Commissioners' principal office for public inspection and every person whose name appears therein shall be entitled to a copy thereof on payment of such reasonable sum as the Commissioners may determine not exceeding one shilling for each copy.

Revised lists to be printed.

25. Notwithstanding anything in this Act contained from and after the first day of March one thousand nine hundred and twelve at every election of elected Commissioners by shipowners and tollpayers or by fishowners and fish tollpayers no person whose name appears on the shipowners' and tollpayers' list for the time being in force shall give to any one candidate at such election

Maximum number of votes to be given for one candidate in certain cases.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. more than one-third of the number of votes to which such person shall be stated by such list to be entitled as such shipowner or tollpayer or both under the provisions of this Act nor shall any person whose name appears in the fishowners' and fish tollpayers' list for the time being in force give to any one candidate at such election more than one-third of the number of votes to which such person shall be stated by such list to be entitled as such fishowner or fish tollpayer or both under the provisions of this Act.

As to voting
by co-owners
partnerships
and bodies
corporate.

26. In all cases in which several persons being co-owners or in partnership or any body corporate are registered in the shipowners' and tollpayers' list or the fishowners' and fish tollpayers' list or the yachtowners' list as the case may be for the time being in force such persons or body corporate shall with respect to the scales of votes provided for by this Part of this Act be deemed one person and in the case of any such co-ownership or partnership one of the members of such co-ownership or partnership authorised in writing by the other members of such co-ownership or partnership or by a majority of them or where no such writing is exhibited the member of such co-ownership or partnership whose name stands first in the co-ownership or partnership and in case of any such body corporate any member or officer of the same authorised in writing under their common seal shall alone be entitled to exercise on behalf of such co-ownership or partnership or body corporate as the case may be their right of voting at the election of elected Commissioners.

Polls for
election of
elected Com-
missioners.

27. For the election of elected Commissioners by registered shipowners and tollpayers or registered fishowners and fish tollpayers or registered yachtowners as the case may be a poll of the registered shipowners and tollpayers or registered fishowners and fish tollpayers or registered yachtowners as the case may be entitled to vote thereat shall (if necessary) be taken at such place within the borough and on such day within fourteen days after the first day of March in the year one thousand nine hundred and twelve and on such day within the same period in every third year thereafter as the Commissioners shall determine and the Commissioners shall cause not less than seven clear days' notice of the day and place of the poll to be given by advertisements and public placards in the borough and the chairman of the Commissioners or in his absence one of the Commissioners

appointed in that behalf by the Commissioners or if no appointment be made or if the Commissioner appointed be not present then the clerk of the Commissioners shall preside at the poll and shall receive the votes of the electors at the poll. A.D. 1911.

28. Subject to the provisions of this Act the person or persons to be from time to time elected as elected Commissioners by the shipowners and tollpayers or the fishowners and fish tollpayers or the yachtowners as the case may be in the case of a poll being taken shall to the extent of the vacancy or vacancies in respect of which the poll is taken be the person or persons receiving thereat the greatest number of votes of the persons whose names appear in the shipowners' and tollpayers' list or the fishowners' and fish tollpayers' list or the yachtowners' list as the case may be. Election to be by majority of votes.

In the case of an equality of votes at the poll the person presiding at the poll shall be entitled to give a casting vote in addition to the vote or votes (if any) to which he may be otherwise entitled under this Act.

29.—(1) Any person entitled to vote in the election of elected Commissioners may by writing signed by him nominate for the office of Commissioner himself if qualified or any other person if qualified and any persons being co-owners or in partnership or any body corporate registered on the shipowners' and tollpayers' list or the fishowners' and fish tollpayers' list or the yachtowners' list as the case may be for the time being in force may in the case of any such co-ownership or partnership by a majority of the members thereof in writing and in the case of a body corporate by writing under their common seal nominate for the office of Commissioner any person duly qualified. Every such nomination which must be assented to in writing by the person nominated shall be on a form to be prescribed by the Commissioners and shall be sent to the clerk of the Commissioners at least two clear days (Sunday excluded) before the day of election and the clerk of the Commissioners shall at least one clear day (Sunday excluded) before the day of election post on the outer door of the principal office of the Commissioners a list of the persons so nominated and assenting and of the names of the persons nominating them and if the persons nominated by registered shipowners and tollpayers and so assenting are more than three the Commissioners to be elected by the registered Nomination and election of elected Commissioners.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. shipowners and tollpayers shall subject as herein-after provided be elected from the persons so nominated and assenting and from them only and if the persons nominated by registered fishowners and fish tollpayers and so assenting are more than three the persons to be elected by the registered fishowners and fish tollpayers shall be elected from the persons so nominated and assenting and from them only and if the persons nominated by registered yachtowners and so assenting are more than one the person to be elected by the registered yachtowners shall be elected from the persons so nominated and assenting and from them only.

(2) If the number of persons duly qualified and nominated by registered fishowners and fish tollpayers and by registered yachtowners respectively and having assented to the nominations as herein-before provided does not exceed the number of vacancies to be filled by persons to be elected by such bodies respectively and if in the case of persons to be elected by registered shipowners and tollpayers not more than one person qualified as required by this Act to fill any one vacancy among the persons to be elected by that body is nominated by such shipowners and tollpayers and has assented to his nomination as herein-before provided no poll shall (except as herein-after provided) be necessary to fill such vacancies or vacancy but in each such case the persons or person so nominated and having so assented shall as from the date stated in their or his respective nominations or nomination be deemed to be elected to fill such vacancies or vacancy and the clerk of the Commissioners shall in each such case as soon as may be after the last day fixed for nomination notify by advertisement in one or more newspapers circulating in the borough that such persons or person have or has been duly elected and that no poll will be taken for the purpose of the election of any persons or person to fill the vacancies or vacancy so filled by them or him.

(3) If in the case of persons to be elected by registered shipowners and tollpayers two or more persons qualified as required by this Act to fill any one vacancy among the persons to be elected by that body are nominated by such shipowners and tollpayers and assent to their nominations as herein-before provided each such vacancy shall be filled from among such persons and from among them only.

(4) If the persons duly nominated for election as elected Commissioners by the registered shipowners and tollpayers or

the registered fishowners and fish tollpayers respectively be less in number than the number of vacancies to be filled or be not qualified as required by this Act to fill all the vacancies the retiring Commissioners elected by those bodies respectively shall if qualified as required by this Act or so many of them respectively (chosen if occasion arises by lot) as may be required to fill the remaining vacancy or vacancies be deemed to be re-elected and if no person be duly nominated by the registered yachtowners the retiring Commissioner elected by them shall if qualified as required by this Act be deemed to be re-elected and in any case in which there shall be no retiring elected Commissioner or an insufficient number of retiring elected Commissioners qualified as required by this Act to fill such vacancy or vacancies the same shall in each such case be filled up in accordance with the provisions of the section of this Act whereof the marginal note is "As to bye-elections."

A.D. 1911.

30. Whenever it may be necessary to take a poll for the election of elected Commissioners the poll shall be open at eleven o'clock in the forenoon of the appointed day and shall close at four o'clock in the afternoon of the same day.

Time of
holding poll.

31. At the close of the yearly meeting of the Commissioners in the year one thousand nine hundred and twelve the Commissioners then in office shall go out of office and at the close of the yearly meeting in every third year thereafter the Commissioners then in office shall go out of office and in every case the places of the retiring Commissioners shall be supplied by the Commissioners then last appointed or elected under this Act but every person so retiring shall if qualified as required by this Act be eligible to be re-appointed or re-elected as the case may be. Provided always that if from any cause the Corporation the Norwich Corporation the Norfolk justices or the Suffolk justices fail to appoint Commissioners in place of Commissioners appointed by them respectively and retiring at the time provided for by this Act the retiring Commissioners appointed by the body so failing to appoint if qualified as required by this Act may continue in office so long as the Commissioners whose appointment is not made might continue in office if they were appointed or if there be no such retiring Commissioners or an insufficient number of such retiring Commissioners duly qualified as required by this Act the vacancy or vacancies shall be filled up in like manner as an occasional vacancy in the office of a Commissioner appointed

Retirement
from office of
Commis-
sioners.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. — by those bodies respectively is directed to be filled up by the section of this Act of which the marginal note is "Notice to be given of occasional vacancies in office of appointed Commissioners."

Supplying
occasional
vacancies.

32. If any Commissioner die or resign or become disqualified or incapacitated to act during the period for which he has been appointed or elected an occasional vacancy shall be deemed to have arisen and shall be filled up if such Commissioner be an appointed Commissioner by the appointment of another Commissioner in his room in accordance with the provisions of the section of this Act of which the marginal note is "Notice to be given of occasional vacancies in office of appointed Commissioners" and if such Commissioner be an elected Commissioner in accordance with the provisions of the section of this Act whereof the marginal note is "As to bye-elections."

A Commissioner appointed or elected under the provisions of this section shall continue in office only so long as the person for whom he is substituted would have been entitled to continue in office.

As to bye-
elections.

33. In every case of an occasional vacancy in the office of an elected Commissioner the proceedings for filling such vacancy shall be as nearly as may be the same as the proceedings provided by this Part of this Act for filling an ordinary vacancy in such office.

Notice to
be given of
occasional
vacancies
in office of
appointed
Commis-
sioners.

34. In every case of an occasional vacancy in the office of an appointed Commissioner the Commissioners shall within one month after they have notice of the vacancy give notice in writing thereof to the town clerk of Great Yarmouth or the town clerk of the city and county of Norwich or the clerk of the peace for the county of Norfolk or the clerk of the peace for the county of Suffolk as the case may be and the Corporation or the Norwich Corporation as the case may be at the then next practicable meeting of their council or the Norfolk justices or the Suffolk justices as the case may be at the then next practicable quarter sessions for their county shall appoint a person qualified as the case may require to supply the vacancy and the provisions of the section of this Act of which the marginal note is "Evidence of appointment of appointed Commissioners" shall apply in the case of each such appointment.

35.—(1) If any person be elected a Commissioner by more than one body he shall within three days after notice in writing from the Commissioners to him thereof choose which body he will represent or in default thereof the Commissioners at their next meeting shall declare the body which he shall represent and he shall thereupon be deemed to be elected by the body only which he shall so choose or which the Commissioners shall so declare and he shall cease to be a Commissioner for any other body and the vacancy so occasioned shall be filled up in like manner as an occasional vacancy is directed to be filled up by the section of this Act of which the marginal note is “As to bye-elections.”

A.D. 1911.
Provision
where Com-
missioner is
elected or
appointed by
more than
one body.

(2) If any person be appointed a Commissioner by more than one body he shall within three days after notice in writing from the Commissioners to him thereof choose which body he will represent or in default thereof the Commissioners at their next meeting shall declare the body which he shall represent and he shall thereupon be deemed to be appointed by the body only which he shall so choose or which the Commissioners shall so declare and he shall cease to be a Commissioner for any other body and the vacancy so occasioned shall be filled up in like manner as an occasional vacancy is directed to be filled up by the section of this Act of which the marginal note is “Notice to be given of occasional vacancies in office of appointed Commissioners.”

(3) If any person who has been appointed a Commissioner is elected a Commissioner a vacancy shall be deemed to have arisen among the appointed Commissioners and the vacancy so occasioned shall be filled up in like manner as an occasional vacancy is directed to be filled up by the section of this Act of which the marginal note is “Notice to be given of occasional vacancies in office of appointed Commissioners.”

36.—(1) The Commissioners shall hold their yearly meeting on the twenty-fifth day of March one thousand nine hundred and twelve and on the like day in every year thereafter save only that when that day is a Sunday or Good Friday bank holiday or a public holiday the yearly meeting shall be held on the then next working day.

Meetings
and quorum
of Commis-
sioners.

(2) The Commissioners shall hold all their meetings at such place in the borough and (subject as herein-before provided as

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. to yearly meetings) on such days as they may from time to time think fit.

(3) The Commissioners may from time to time allow to individual Commissioners their reasonable travelling expenses incurred in attending meetings of the Commissioners or otherwise in the execution of their duties under the Great Yarmouth Port and Haven Acts 1866 to 1911.

(4) The quorum of Commissioners for all meetings shall be seven.

Commis-
sioners' office
to be in
borough.

37. The principal office of the Commissioners shall be at such convenient place in the borough as the Commissioners from time to time think fit.

As to se-
parate com-
mittees with
respect to
Rivers Yare
Bure and
Waveney.

38. From and after the twenty-fifth day of March one thousand nine hundred and twelve the Norwich Commissioners with respect to the River Yare the Norfolk Commissioners with respect to the River Bure and the Suffolk Commissioners with respect to the River Waveney shall be separate committees respectively of the Commissioners for executing the Great Yarmouth Port and Haven Acts 1866 to 1911 with respect to those rivers respectively but under the control and general superintendence of the Commissioners who may from time to time appoint such additional Commissioners as they think fit to act on such committees or any of them and those committees may and shall with respect to those rivers respectively but subject to the provisions of the said Acts exercise and perform all the powers duties and obligations by the said Acts conferred and imposed on the Commissioners of maintaining repairing and improving those rivers respectively and of levying receiving applying and accounting for the tolls and other income of those rivers respectively and of the appointment and removal of officers and the provisions of the Commissioners Clauses Act 1847 relating to committees appointed by the Commissioners shall apply to each of those three committees Provided always that in the execution of the Great Yarmouth Port and Haven Acts 1866 to 1911 by the whole body of Commissioners the members of each of those three committees may and shall act in their individual capacity of Commissioners and not in their collective capacity of a committee.

Errors in
election &c.
not to vitiate

39. Any act of the Commissioners or of any member thereof shall not be invalid or illegal by reason of any irregularity

in the appointment nomination or election of any Commissioner or by reason of the non-delivery of or the too-late delivery of or any error in any list provided for by this Act or by reason of any irregularity in the making or publishing of any such list or any notice in respect thereof or by reason of any failure or omission on any occasion to appoint or elect any Commissioner or by reason of any disqualified person acting as a Commissioner or by reason of any other irregularity error failure or omission in or about any appointment nomination or election or in or about any matter preliminary or incidental thereto.

A.D. 1911.
acts of Com-
missioners.

PART III.

WORKS.

40. Subject to the provisions of this Act the Commissioners may make and maintain in the lines or situation and according to the levels shown on the deposited plans and sections the dock or tidal basin and entrance herein-after described.

Power to
make dock.

The works herein-before referred to and authorised by this Act will be situate in the parish and county borough of Great Yarmouth in the county of Norfolk and on the foreshore of the haven within such parish and county borough and will comprise—

A dock or tidal basin with an entrance from the haven at its western side to be situate on part of lands known as the South Denes adjacent to the haven such entrance being situate at or near the south-western corner of the intended dock and at a point forty-one chains or thereabouts south of the Lower Ferry across the haven and which dock is intended to be about one thousand six hundred feet in length from north to south and about four hundred feet in width from east to west and to comprise an area of sixteen acres or thereabouts.

41. The Commissioners may in connexion with the dock works and for the purposes of this Act exercise all or any of the powers and carry into effect all or any of the objects following (that is to say):—

Subsidiary
works and
powers in
connexion
with dock
works.

(1) They may from time to time take and divert into and use for the purposes of the dock the waters of the haven and all waters flowing to or into the haven:

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

(2) They may from time to time deepen dredge scour cleanse widen alter and improve the entrance and approaches to the dock works and the bed channel and foreshore of the haven and may remove any mud soil shingle rocks and shoals and otherwise improve the said entrance and approaches and so facilitate the access to the dock works and may use and appropriate any materials so dredged or removed :

(3) They may reclaim for the purposes of the dock works and use in connexion therewith so much of the land foreshore and bed of the haven adjoining the dock works as may be necessary therefor and for keeping the entrance clear and open for the passage of vessels and boats and for the berthing and laying of vessels at the quay walls and wharves :

Provided that no materials excavated or dredged under the provisions of this section shall be deposited in any place below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade.

Works below
high-water
mark not to
be com-
menced
without con-
sent of
Board of
Trade.

42. The Commissioners shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve such approval being signified as last aforesaid and where any such work may have been constructed the Commissioners shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Commissioners and the amount of such costs and charges shall be a debt due from the Commissioners to the Crown and shall be recoverable as a Crown debt or summarily.

Lights
on works
during con-
struction.

43. The Commissioners shall at or near the works below high-water mark hereby authorised during the whole time of

the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. A.D. 1911.

If the Commissioners fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

44. The Commissioners shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House shall from time to time direct. If the Commissioners fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds. Permanent lights on works.

45. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Commissioners on in over through or across tidal lands or tidal water or of the intended site of any such work the Commissioners shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Commissioners to the Crown and be recoverable as a Crown debt or summarily. Survey of works by Board of Trade.

46. If a work constructed by the Commissioners on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Commissioners and the amount of such expense shall be a debt due from the Commissioners to the Crown and be recoverable as a Crown debt or summarily. Abatement of work abandoned or decayed.

47. In case of injury to or destruction or decay of the dock works or any part thereof the Commissioners shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House and shall apply to that corporation for directions as to the means to be taken and the Commissioners shall be liable Provision against danger to navigation.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Power to
stop up road.

48. The Commissioners may stop up so much of South Denes Road as is situate within the limits of deviation and of land to be acquired shown on the deposited plans and as is upon the lands coloured blue and yellow on the plan dated the first day of March one thousand nine hundred and eleven and signed by Thomas Alfred Rising the present mayor of Great Yarmouth on behalf of the corporation and Russell James Colman the present chairman of the Commissioners on behalf of the Commissioners and thereupon all public rights of way over that portion of the said road shall be extinguished but such portion of road shall not be stopped up unless the Commissioners are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree and the Commissioners may appropriate and use for the purposes of their undertaking the site of the portion of road stopped up so far as the same is bounded on both sides by lands of the Commissioners Provided that the Commissioners shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
deviate in
construction
of dock
works.

49. Subject to the provisions of this Act the Commissioners may in the execution of the dock works deviate laterally from the lines thereof as shown on the deposited plans to any extent within the limits of deviation shown thereon and may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding seven feet upwards or downwards :

Provided that no deviation of the dock works either lateral or vertical below high-water mark shall be made without the previous consent in writing of the Board of Trade.

Period for
completion
of dock
works.

50. If the dock works are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Commissioners for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

PART IV.

A.D. 1911.

LANDS.

51. Subject to the provisions of this Act the Commissioners may enter upon take and use for the purposes of the dock and other works by this Act authorised and the future development thereof all or any part of the lands delineated on the deposited plans and described in the deposited book of reference relating thereto and may also enter upon take and use for the purposes of the Great Yarmouth Port and Haven Acts 1866 to 1911 all or any of the lands following delineated on the deposited plans and described in the deposited book of reference all of which lands are in the parish and county borough of Great Yarmouth (that is to say):—

Power to
acquire
lands.

Certain lands on the east side of and adjoining the haven bounded on the north by a quay known as South Quay on the south by property belonging or reputed to belong to the Norfolk Cold Storage and Ice Manufacturing Company Limited on the east by Southgates Road and on the west by the haven and which said lands are commonly known as Colman's Wharf Case and Steward's Wharf and Sterry's Wharf.

52. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Commissioners of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Commissioners and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Commissioners or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the

A.D. 1911.

scheduled properties the owner shall fail to notify in writing to the Commissioners that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Commissioners such portion only without the Commissioners being obliged or compellable to purchase the whole the Commissioners paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Commissioners allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Commissioners have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Commissioners the portion which the tribunal shall have determined to be so severable without the Commissioners being obliged or compellable to purchase the whole the Commissioners paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion

determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner: A.D. 1911.

(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Commissioners may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:

(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Commissioners in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

53. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished Provided that the Commissioners shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands

As to private rights of way over lands taken compulsorily.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. *Clauses Acts with reference to the taking of lands otherwise than by agreement.*

Period for
compulsory
purchase of
lands.

54. The powers of this Act for the compulsory purchase of lands by the Commissioners shall cease after the expiration of three years from the passing of this Act.

Persons
under dis-
ability may
grant ease-
ments &c.

55. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Commissioners any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Incorporation of
certain provisions of
Act of 1866
with this
Part of Act.

56. The sections herein-after referred to of the Act of 1866 are hereby incorporated with this Part of this Act and shall extend and apply to the undertaking and to the Commissioners in respect thereof as fully and effectually as if those sections had been re-enacted in this Act with reference thereto (that is to say):—

Section 56 (Purchase of lands by Commissioners by agreement);

Section 57 (Sale lease &c. of superfluous lands):

And in construing the said sections for the purposes of this Act the expression “this Act” therein shall mean the Great Yarmouth Port and Haven Acts 1866 to 1911:

Provided always that before the Commissioners sell under the provisions of this section any lands acquired from or transferred to the Commissioners by the corporation under this Act they shall offer the same to the corporation and in the event of the corporation within a period of six weeks after such offer signifying their desire to purchase the same the Commissioners shall sell and the corporation shall purchase such lands accordingly at such price as may be agreed between the Commissioners and the corporation or failing agreement ascertained by arbitration in manner provided by section 130 of the Lands Clauses Consolidation Act 1845 Provided also that if within

the said period the corporation shall fail to signify their desire to purchase the same lands they shall be deemed to have declined to purchase the same. A.D. 1911.

PART V.

FISH WHARF UNDERTAKING.

57.—(1) The corporation shall sell to the Commissioners and the Commissioners shall purchase the fish wharf undertaking in consideration of the sum of forty-five thousand pounds to be paid by the Commissioners to the corporation and such sale and purchase shall be completed on the thirty-first day of March one thousand nine hundred and twelve or such other date as may be agreed between the corporation and the Commissioners and the said thirty-first day of March one thousand nine hundred and twelve or such other date as aforesaid as the case may be is herein-after referred to as “the agreed date of completion” and in the event of the purchase money not being so paid as aforesaid the Commissioners shall pay to the corporation interest at the rate of four pounds per centum per annum on the said sum of forty-five thousand pounds or so much thereof as remains unpaid until the date of actual payment thereof.

Purchase of
fish wharf
undertaking.

(2) Upon payment of the purchase money to the corporation the fish wharf undertaking shall by virtue of this Act thenceforth be transferred by the corporation to and become and be vested in the Commissioners for all the estate and interest therein of the corporation free from all mortgages charges debts and liabilities upon or affecting the same but subject to any then existing leases tenancies and tenancy agreements affecting any part of the said undertaking and the date of such transfer and vesting is in this Act referred to as “the date of transfer.”

(3) The purchase money when received by the corporation shall be applied by them in paying off so much of their existing loan indebtedness in respect of the fish wharf undertaking as shall be outstanding at the date of transfer or in such other manner or in such proportions as may be approved of by the Local Government Board and the balance (if any) shall be applied by the corporation for such purposes to which capital

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. — is properly applicable as they may with the approval of the Local Government Board determine and until the purchase money shall be applied in manner provided by this subsection it may be invested by the corporation in statutory securities.

(4) The corporation shall at all reasonable times after the date of transfer be entitled to free access with or without horses carts and wagons to and from their sewers drains and sewage pumping station and to lay down construct and maintain sea water mains drains pipes and electric lines and apparatus in or under any part of the fish wharf undertaking :

Provided that all such works so far as the same shall be laid down or constructed in or upon property of the Commissioners shall be laid down or constructed only in accordance with plans and sections to be previously submitted to and reasonably approved by the Commissioners and under the superintendence and to the reasonable satisfaction of the Commissioners and all such works as aforesaid shall be maintained in good condition and repair by and at the expense of the corporation to the reasonable satisfaction of the Commissioners. If any difference shall arise between the corporation and the Commissioners under this subsection such difference shall be referred to and determined by an arbitrator to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and subject thereto in accordance with the provisions of the Arbitration Act 1889.

Corporation
to pay out-
goings and
be entitled to
receipts until
transfer.

58. The corporation shall bear and pay all outgoings of every kind and shall be entitled to receive all income arising in respect of the fish wharf undertaking up to the date of transfer but all the net profits of the fish wharf undertaking as on and from the agreed date of completion until the date of transfer shall belong to the Commissioners and be paid made over and transferred by the corporation to the Commissioners accordingly at the date of transfer. Provided that nothing in this Act contained shall entitle the corporation to retain for their own benefit so much of any rents tolls or other payments paid in advance as shall be attributable to any period after the agreed date of completion but such rents tolls or other payments shall be apportioned and so much thereof as is attributable to any period after the agreed date of completion shall be paid over by the corporation to the Commissioners.

59. Until the date of transfer the fish wharf undertaking shall be maintained and carried on by the corporation as heretofore in the ordinary course of business but the corporation shall not without the previous consent of the Commissioners under the hand of their clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course necessary for the maintenance and the proper conduct of the fish wharf undertaking.

A.D. 1911.

Maintenance
of fish wharf
undertaking
by corpora-
tion till
transfer.

60. All mortgages charges debts and liabilities upon or affecting the fish wharf undertaking or due from or payable by the corporation which at the date of transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the corporation and the corporation shall indemnify the Commissioners against the same and if at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the corporation the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer of the said undertaking or of anything in this Act but the same may be continued prosecuted and enforced against or in favour of the corporation as and when it might have been continued prosecuted and enforced against or in favour of them if this Act had not been passed.

Pending
actions.

61. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments and all working arrangements affecting the corporation and the fish wharf undertaking and in force at the date of transfer shall after such date be as binding and of as full force and effect against or in favour of the Commissioners and may be enforced as fully and effectually as if instead of the corporation the Commissioners had been a party thereto.

Contracts of
corporation
to be bind-
ing on Com-
missioners.

62. All books and documents which if the transfer of the fish wharf undertaking had not been made would have been evidence in respect of any matter relating to the said undertaking for or against the corporation shall be admitted in evidence in respect of the same or the like matter for or against the Commissioners.

Books &c.
to remain
evidence.

63. The Commissioners shall take over any officer or servant who shall have been in the regular employment of the

As to officers
&c. engaged in
fish wharf
undertaking.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. corporation in the fish wharf undertaking for one year immediately preceding and who is still so employed at the date of transfer Any such officer or servant who shall not be so taken over by the Commissioners or given an opportunity of employment with the Commissioners on so far as practicable the same terms and conditions as those on which he was so employed by the corporation and who by virtue of this Act or of anything done in pursuance or in consequence of this Act suffers any direct or pecuniary loss by diminution of office or by diminution or loss of fees or salary shall be deemed to be an officer entitled to compensation within the meaning of section 120 of the Local Government Act 1888 and that section shall apply accordingly with the substitution of the Commissioners for the county council and the Local Government Board for the Treasury Such compensation may at the option of the Commissioners be by way of annuity or by payment of a sum in gross.

Power to
continue and
regulate fish
wharf under-
taking &c.

64. The Commissioners may—

- (A) From and after the date of transfer carry on manage regulate and maintain and from time to time extend and add to the fish wharf undertaking upon the lands now used for the purposes of that undertaking and subject to the provisions of this Act upon any other lands acquired by or vested in them under the provisions of the Great Yarmouth Port and Haven Acts 1866 to 1911;
- (B) Carry on manage regulate and maintain any fish wharf for the time being of the Commissioners and any works and conveniences acquired by them under this Act; and
- (C) Regulate in accordance with the provisions of this Act the traffic in fish at and the user of the fish wharf undertaking and any such fish wharf as aforesaid.

Partial re-
peal of Fish
Wharves
Act and
Order.

65.—(1) As from the date of transfer the Fish Wharves Act of 1866 with the exception of sections 12 to 15 (inclusive) and with the exception of the sections set out in the Sixth Schedule to this Act and the Order of 1890 with the exception of sections 18 to 21 (inclusive) and with the exception of the

sections set out in the said Sixth Schedule shall be and the same are hereby repealed. A.D. 1911.

(2) As from the date when the corporation shall have paid off all moneys borrowed or raised by them under the authority of the last-mentioned Act and Order sections 12 to 15 (inclusive) of the Fish Wharves Act of 1866 and sections 18 to 21 (inclusive) of the Order of 1890 shall be repealed.

66.—(1) The Commissioners and the Great Eastern Railway Company may carry into effect agreements with respect to the following purposes or any of them (that is to say):—

As to agreements with Great Eastern Railway Company.

- (A) For the maintenance leasing user management working and repair of the existing railway or any part thereof and works connected therewith;
- (B) For the supply of rolling and working stock for the existing railway;
- (C) For the collection delivery and general conduct of the traffic upon the existing railway or any part thereof;
- (D) For fixing collecting taking and levying the tolls receipts and revenues levied taken or arising and for the payment of the outgoings in respect of the existing railway or any part thereof;
- (E) For the rent or consideration to be paid in respect of the existing railway or any part thereof or the profits arising therefrom:

Provided that no agreement or lease with the Great Eastern Railway Company for any of these purposes shall be for a longer term than thirty years.

(2) The Commissioners shall not make any agreement under the provisions of this section except with the approval of the corporation but such approval shall not be unreasonably withheld.

(3) If any question shall arise as to whether any such approval is unreasonably withheld the matter shall be referred to and determined by an arbitrator to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and such arbitrator may give any approval for the purposes of this section Subject as

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Masters of vessels &c. to give to collector account of fish or goods brought into haven &c.

67. The owner or master of any vessel and the owner salesman or person in charge of any fish or goods landed unloaded or shipped or intended to be landed unloaded or shipped in the haven or liable to the payment of any toll by this Act authorised shall on demand state to the collector of tolls the name of the owner seller or purchaser of the fish or goods or of the person to whom or the vessel into which they are to be delivered and a true account of the quantities description kinds number and weight of the fish and goods and shall produce to the collector of tolls all bills of lading sale books accounts and documents relating to the landing unloading shipping or delivery quantity kinds number weight and sale of the fish or goods and every person who shall offend against this enactment or shall prevent the collector from properly examining the bills of lading sale books accounts or documents shall for every such offence forfeit not exceeding five pounds.

Exemption of officers of Board of Trade.

68. Officers of the Board of Trade being in the execution of their duty shall at all times have free ingress to and passage and egress on into along through and out of the works forming part of the fish wharf undertaking by land and with their vessels and otherwise without payment.

PART VI.

TOLLS AND CHARGES.

Repeal of existing schedules of tolls.

69. On and after the first day of August one thousand nine hundred and twelve section 14 (Tolls on vessels in First Schedule) section 15 (Tolls on animals fish and goods in Second Schedule) and section 16 (River tolls on vessels animals fish and goods in Third Schedule) of the Act of 1900 and section 7 (Repeal of existing schedules of tolls and new schedules) of the Act of 1907 and the schedules to the said last-mentioned Act shall be and the same are hereby repealed:

Provided that any tolls due to the Commissioners before the said first day of August one thousand nine hundred and twelve may be recovered as the tolls contained in the Second Third and Fourth Schedules to this Act are recoverable.

70. On and after the first day of August one thousand nine hundred and twelve the Commissioners may demand take and recover any sums not exceeding the several tolls respectively specified in the Second Schedule to this Act for or in respect of vessels entering into or departing from the haven or navigating or using the haven or any part thereof or landing embarking carrying or conveying passengers thereon and in respect of all passengers so landing or embarking or carried or conveyed.

A.D. 1911.
Tolls on
vessels in
Second
Schedule.

71. On and after the first day of August one thousand nine hundred and twelve the Commissioners may demand take and recover any sums not exceeding the several tolls respectively specified in the Third Schedule to this Act in respect of all animals fish and goods imported into or exported from the haven and loaded or unloaded in or carried through the haven and in respect of all animals fish and goods (except fish green or partially cured landed on the beach) loaded or unloaded in Yarmouth Roads within the port.

Tolls on
animals fish
and goods
in Third
Schedule.

72. On and after the first day of August one thousand nine hundred and twelve the Commissioners may demand take and recover any sums not exceeding the several tolls respectively specified in the Fourth Schedule to this Act for or in respect of all vessels navigating or using the River Yare the River Bure or the River Waveney respectively or any part of any of such rivers and in respect of all passengers carried or conveyed on any part of any of such rivers and in respect of all animals fish and goods carried or conveyed in any vessel on any part of any of such rivers. Provided that the tolls in respect of passengers animals fish and goods shall be and become payable at the option of the Commissioners at the place on any of the said rivers where such passengers are landed or embarked or where such animals fish or goods are loaded or unloaded or where the vessel first touches after entering any of the said rivers whichever shall first happen. Provided always that no river tolls shall be levied in respect of any animals hay straw fodder or farm produce chalk or manure carried on the River Yare the River Bure or the River Waveney or any part of any of such rivers by the occupier of lands abutting thereon for depasturing consumption or use upon any other lands in his occupation abutting on the same river. And provided also that the expression "chalk" in this section shall be deemed to mean and include only chalk carried

River tolls
on vessels
animals fish
and goods
in Fourth
Schedule.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. on any of the said rivers by the occupier of agricultural land for use upon his land as manure or for some agricultural purpose in connection with such land.

Tolls on fish
and goods
landed &c. at
or shipped
in haven.

73. The Commissioners may demand take and recover in respect of fish landed unloaded or sold at or shipped from the dock or at or from the fish wharf undertaking or at or from any dock quay wharf or landing place whether belonging to private owners or not within or adjoining the haven and in respect of all goods landed at or shipped from the dock or at or from the fish wharf undertaking or at or from any dock quay wharf or landing place within or adjoining the haven (other than any quay wharf or landing place belonging to any private owner or to the corporation and other than the public quay known as the South Quay) tolls not exceeding the tolls specified in the Fifth Schedule to this Act but until the transfer to the Commissioners of the fish wharf undertaking the Commissioners shall not under the powers of this section demand take or recover any tolls in respect of fish or goods in respect of which rates are for the time being payable to the corporation under section 46 of the Fish Wharves Act of 1866 Provided always that the tolls from time to time payable under this section in respect of fish landed unloaded or sold at any quay wharf or landing place belonging to any private owner for the purpose of being iced salted or otherwise cured thereon or on the property of any such owner adjacent thereto by him or his lessee or tenant shall be reduced by one-half of the amount of such tolls respectively.

Tolls on
existing
railway.

74. The Commissioners may demand and take for the conveyance of animals fish and goods along the existing railway any tolls not exceeding the following and which are to include the use of wagons carts or trucks (viz.) :—

- (A) For every ton or any less quantity than a ton of fish or goods for every mile and for every fractional part of a mile sixpence ;
- (B) For every horse ox mule ass or head of neat cattle sixpence ;
- (C) For every animal not before enumerated twopence.

Tolls pay-
able by
owner &c.

75. All tolls on vessels by this Act granted or authorised to be taken shall be paid by the master or owner of the vessel

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

and all other tolls by this Act granted or authorised to be taken shall be paid by the owner salesman or person in charge of the fish or goods in respect of which they are payable or the master or owner of the vessel from or in which the same are loaded or unloaded. A.D. 1911.

76. It shall be lawful for the Commissioners to confer exemptions from to compound for or remit or make rebates from or to combine all or any of the tolls for the time being authorised by the Great Yarmouth Port and Haven Acts 1866 to 1911 or any of them to be made laid levied charged demanded taken or recovered Provided always that the provisions of this section shall be and be considered as in addition to and not in derogation of sections 105 and 115 of the Act of 1866 Provided also that subject to the provisions of this Act every exemption composition remission rebate or combination shall under similar circumstances be made equally to all persons. Power to compound &c. for tolls.

77. The provisions of the Great Yarmouth Port and Haven Acts 1866 to 1907 relating to recovery of tolls shall so far as applicable extend and apply to any tolls authorised by this Act or to any composition for tolls made under the authority of this Act and any such tolls and any such composition (other than river tolls on vessels and river tolls on animals fish and goods provided for by the Fourth Schedule to this Act or any composition in respect thereof) when received by the Commissioners shall be applied in accordance with the provisions of section 142 of the Act of 1866 and any such river tolls on vessels and river tolls on animals fish and goods or any composition in respect thereof when received by the Commissioners in respect of the River Yare shall be applied in accordance with the provisions of section 139 and when received in respect of the River Bure or the River Waveney shall be applied in accordance with the provisions of section 140 of the said Act of 1866. Recovery and application of tolls &c.

78. The Commissioners may from time to time demand and take for the weighing measuring and counting of any fish animals or goods shipped from or landed at the dock or at any fish wharf of the Commissioners or the user of any vessel engine tramway railway siding truck cart horse crane machine or other convenience and for covering or protecting any fish or goods and for ice and for any other services performed or materials or Charges by Commissioners for services as to fish and goods.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. conveniences supplied by them in respect of any fish animals or goods such reasonable charges as the Commissioners from time to time appoint and the same shall be paid by the person on whose request the services are performed or the materials or conveniences are supplied and the amount thereof may be recovered as tolls are under this Act recoverable.

PART VII.

FINANCIAL.

Power to
borrow.

79. For the purposes of this Act and for the general purposes of the undertaking other than the purposes of the River Yare the River Bure and the River Waveney the Commissioners may from time to time borrow and re-borrow at interest further sums not exceeding in the aggregate two hundred and fifty thousand pounds including any sums borrowed or authorised to be borrowed by them under the Act of 1866 the Great Yarmouth Port and Haven Order 1874 and the Act of 1900 and the debt of the Old Commissioners mentioned in section 134 of the Act of 1866 and all moneys so borrowed shall be carried to the credit of the general account and for the purpose of securing the repayment of any sums so borrowed the Commissioners may mortgage all or any of their property revenues and tolls under the Great Yarmouth Port and Haven Acts 1866 to 1911 other than tolls payable under the Fourth Schedule to this Act Provided always that all moneys borrowed under and by virtue of the Act of 1866 or the Acts thereby repealed the said Order of 1874 and the Act of 1900 and all mortgages and charges on the property revenues and tolls of the Commissioners other than river tolls existing at the passing of this Act shall have priority over all moneys borrowed and all mortgages and charges made under and by virtue of this Act.

Debenture
stock.

80. The Commissioners may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 so far as the same are applicable to the Commissioners but excluding such parts thereof as are applicable only where the undertakers are a company and such parts as are inconsistent with the provisions of this Act but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Commissioners under

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

any previous Act or this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed upon all mortgages and certificates of debenture stock. A.D. 1911.

81. The Commissioners shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person or persons in whose name any loan or security for loan may stand in the register of mortgages of the Commissioners shall from time to time be a sufficient discharge to the Commissioners in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Commissioners have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register. Commissioners not to regard trusts.

82. Lenders of money to the Commissioners under this Act shall not be bound to inquire as to the observance by the Commissioners of any of the provisions of this Act or the Great Yarmouth Port and Haven Acts 1866 to 1907 or to see to the application or be answerable for any loss mis-application or non-application of the money lent or any part thereof. Lenders not bound to inquire.

83. The Commissioners shall pay off or make provision for paying off all sums borrowed by them under the authority of this Act within a period (herein referred to as "the prescribed period") not exceeding fifty years from the time or respective times of borrowing the same. Period for repayment of money borrowed.

84. The Commissioners shall pay off all sums borrowed by them under the authority of this Act by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund. Mode of payment off of money borrowed.

85.—(1) If the Commissioners determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either— Sinking fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities available for trustees under the statutes for the time being in force the Commissioners being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Commissioners towards the equal annual payments to the fund or carried to their general account.

(4) The Commissioners may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Commissioners shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Commissioners:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived

from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments or carried to the Commissioners' general account. A.D. 1911.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Commissioners in addition to the payments provided for by this Act.

(7) If it appear to the Commissioners at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Commissioners to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the Commissioners desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Commissioners be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Commissioners may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as they think fit.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will be sufficient to repay the loan in respect of which it is formed within the prescribed period the Commissioners may discontinue the equal annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Commissioners may determine.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

Application
of money
borrowed.

Power to
re-borrow.

86. All sums borrowed by the Commissioners under this Act shall be applied only to purposes to which capital is properly applicable.

87. If the Commissioners pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of other moneys received on capital account not being borrowed moneys they may from time to time re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligation of the Commissioners with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

PART VIII.

MISCELLANEOUS.

Subsidiary
powers in
connection
with under-
taking.

88. The Commissioners may in connection with the dock and other works by this Act authorised and for the purposes of the undertaking and of the Great Yarmouth Port and Haven Acts 1866 to 1911 exercise upon all or any of the lands shown on the deposited plans and described in the deposited book of reference when entered upon by the Commissioners under the provisions of this Act all or any of the powers following (that is to say):—

- (1) They may divert alter stop up remove or otherwise interfere with either temporarily or permanently any sewers drains gas and water mains and pipes telegraphic telephonic electric and other wires pipes and apparatus and other works so far as may be necessary or desirable the Commissioners providing or causing to be provided a proper substitute before interrupting the flow of gas water or sewage in any of the premises And in the exercise of any of such powers the Commissioners shall do as little damage as may be and shall make full compensation to all parties entitled thereto for any damage by them sustained by reason of the exercise of such powers the amount thereof to be determined in the manner provided by the Lands Clauses Acts for settling cases of disputed

compensation Provided that the Commissioners shall not remove alter or in any way interfere with any telegraphic telephonic or electric cables wires pipes or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878: A.D. 1911.

- (2) They may from time to time make and maintain all necessary and convenient railways tramways rails sidings junctions turn-tables stations signals bridges approaches roads gates warehouses sheds offices buildings yards quays wharves wharf walls retaining-walls river walls embankments telegraphic and telephonic works waterworks pumps wells reservoirs pipes sewers drains culverts sluices jetties groynes shipping places landing places walls staithes stairs stages gantries coal and other tips machinery gridirons cuts channels locks graving docks dock entrances timber ponds cranes hydraulic and other lifts hoists drops dolphins moorings buoys beacons and other works buildings appliances and conveniences:

Provided that the Commissioners shall not exercise any of the powers of this section in respect of any highways roads sewers drains sea-water mains or pipes apparatus or other works belonging to or vested in or under the control of the corporation except in accordance with such plans and sections as shall have been previously submitted to and reasonably approved by the corporation or in case of difference settled by an arbitrator to be appointed failing agreement on the application of either the Commissioners or the corporation by the President of the Institution of Civil Engineers and subject thereto in accordance with the provisions of the Arbitration Act 1889 Provided that if the corporation do not within twenty-one days after the submission of such plans and sections express their approval or disapproval thereof or signify their reasonable requirements in relation thereto they shall be deemed to have approved thereof:

Provided also that any telegraphic or telephonic works made or maintained by the Commissioners under this section shall not be used in contravention of the exclusive privilege of the Postmaster-General under the Telegraph Act 1869:

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. Provided further that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of the last-mentioned section.

Power
to make
junctions.

89. Subject to the provisions of this Act the Commissioners may subject to the provisions of sections 9 to 12 (inclusive) of the Railways Clauses Act 1863 in connection with and as part of the dock works by this Act authorised make and effect junctions between any railways tramways or sidings to be constructed by them under this Act and the existing railway and any railways tramways or sidings belonging to or worked by the corporation the Great Eastern Railway Company or the Midland and Great Northern Railways Joint Committee and situate within the limits of deviation and of land to be acquired shown on the deposited plans of the dock.

For the purposes of this section the said sections of the Railways Clauses Act 1863 shall be incorporated with this Act and in construing the provisions thereof the expression "the railway" therein shall mean any railways tramways or sidings so constructed by the Commissioners and the expression "the company" shall mean the Commissioners.

As to facilities to be
afforded by
Commissioners.

90. The Commissioners shall afford the Great Eastern Railway Company and the Midland and Great Northern Railways Joint Committee respectively full and equal facilities for the collection forwarding and delivery of all traffic to from and on the dock works and premises of the Commissioners and any railways that may be constructed or acquired by the Commissioners under the powers of this Act and in case of any dispute between the Commissioners and the Great Eastern Railway Company and the Midland and Great Northern Railways Joint Committee or either of them as to the facilities to be afforded under the provisions of this section or in respect of rates tolls or other charges made or put in operation by the Commissioners the same shall be referred to an arbitrator to be appointed (in case of dispute) by the Board of Trade on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

91. Notwithstanding anything in this Act contained or shown upon the deposited plans and sections the Commissioners shall not without the previous consent of the Great Eastern Railway Company or the Midland and Great Northern Railways Joint Committee as the case may be in writing under their common seal take use enter upon or in any way interfere with either temporarily or permanently any land railway railway siding tramway or other work belonging to the Great Eastern Railway Company or the Midland and Great Northern Railways Joint Committee respectively nor without the previous consent of the Great Eastern Railway Company in writing under their common seal interfere with any railway railway siding or tramway used or worked by the Great Eastern Railway Company or with the traffic on any such railway railway siding or tramway.

A.D. 1911.
For protection of railway companies.

92. For the protection of the Great Yarmouth Water Works Company (in this section called "the water company") the following provisions shall unless otherwise agreed in writing between the water company and the Commissioners have effect (that is to say):—

For protection of Great Yarmouth Water Works Company.

(1) Before commencing any works by this Act authorised which will in any way interfere with any water mains pipes or works belonging to the water company the Commissioners shall deliver to the water company plans and sections of the works proposed to be executed in so far as they affect any such water mains pipes or works as aforesaid and such plans and sections shall be so delivered at least fourteen days before the commencement of any such work and if within fourteen days from such delivery the water company do not signify their disapproval of such plans and sections to the Commissioners they shall be deemed to have approved the same:

(2) The said works shall be executed in strict accordance with the plans and sections so approved or in case of difference settled as herein-after provided and to the reasonable satisfaction of the water company Provided that all works connected with the removal or alteration of any such water mains pipes or works as aforesaid shall if the water company elect so to do be executed by the water company with

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

their own workmen with all reasonable speed and at the reasonable expense in all things of the Commissioners :

(3) The Commissioners shall make compensation to the water company for all loss or damage which they may at any time sustain by reason of any interference by the works by this Act authorised with or disturbance or settlement caused thereby of the water mains pipes or works of the water company and shall also repay to the water company the cost of all works which it may be reasonably necessary for that company to execute in order to protect their water mains pipes and works from injury by the works of the Commissioners by this Act authorised :

(4) If any difference shall arise between the Commissioners and the water company under this section concerning the said plans and sections or concerning the execution of the said works or otherwise every such difference shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
Postmaster-General.

93. Notwithstanding anything shown upon the deposited plans or contained in this Act the Commissioners shall not except with the consent in writing of the Postmaster-General enter upon take or use the property numbered 35 on the said plans relating to lands in the parish of Great Yarmouth or any part thereof.

For protection of General Estates Company Limited and James Percy.

94. Except so far as may be otherwise agreed between the General Estates Company Limited and James Percy (in this section called "the owners") and the Commissioners the following provisions shall apply and have effect (that is to say) :—

(1) Nothing in this Act contained shall take away or diminish any rights franchises or privileges in respect of ferries which may now belong to or be vested in the owners :

(2) Notwithstanding anything contained in this Act or shown on the deposited plans the Commissioners shall not enter upon take or use any lands or property belonging to the owners at the date of the passing of this Act.

95. The Commissioners shall within five years after the date of transfer make up and pave and at all times thereafter maintain and cleanse so much of the lands within the borough described in the Second Schedule to the Great Yarmouth Corporation Act 1897 and commonly known as the Gorleston Award Lands as lies to the south of Salmon's Hardway and from and after the passing of this Act the said portion of the said lands shall be and be deemed to be a public quay within the meaning of the Great Yarmouth Port and Haven Acts 1866 to 1911 and the provisions of the inclosure award dated the twenty-ninth day of April eighteen hundred and thirteen referring to the said lands and section 55 of the said Act of 1897 and all byelaws made under the said section shall cease to apply to the said portion of the said lands.

A.D. 1911.

As to
Gorleston
Award
Lands.

96. The corporation may with the consent of the Local Government Board transfer to the Commissioners on such terms whether pecuniary or otherwise as may be agreed upon between the corporation and the Commissioners any lands or any interest or easement in lands belonging to the corporation which may be required or necessary or convenient for or in relation to the construction extension or maintenance of the dock and other works by this Act authorised or which may be suitable to be used for purposes in connection with or incidental to the undertaking:

Power to
corporation
to transfer
lands.

Provided always that any lands vested in the corporation for the purposes of the Education Acts 1870 to 1910 shall only be transferred in accordance with the provisions of the Education (Administrative Provisions) Act 1909.

97. The corporation on the one hand and the Commissioners on the other hand may from time to time enter into and carry into effect agreements with reference to the cleansing and scavenging by the corporation of the dock works and of the fish market and any roads passages and places forming part of the fish wharf undertaking and the approaches to and the precincts of the said market or any of them and the lands referred to in the section of this Act of which the marginal note is "As to Gorleston Award Lands" or any part or parts thereof respectively and with reference to the payment to be made by the Commissioners to the corporation in relation to such cleansing and scavenging.

As to
cleansing of
fish market
&c.

A.D. 1911.

Corporation
may guarantee
Commissioners'
loans.

98. The corporation may with the consent of the Local Government Board guarantee the repayment of any principal moneys borrowed or authorised to be borrowed by the Commissioners under the Great Yarmouth Port and Haven Acts 1866 to 1911 and any interest thereon and may for that purpose charge any moneys payable by them under such guarantee upon their borough fund and borough rate or district fund and general district rate or on both the said funds and rates.

Contribu-
tions by cor-
poration.

99.—(1) The corporation may and shall contribute the sum of twenty thousand pounds and may with the consent of the Local Government Board contribute such other sums as the corporation and the Commissioners may from time to time agree upon towards the construction of the dock and other works by this Act authorised.

The said sum of twenty thousand pounds shall be payable in four equal instalments of five thousand pounds each as follows:—

A sum of five thousand pounds when the Commissioners shall have expended a sum of fifteen thousand pounds on the construction of the said dock and works;

A further sum of five thousand pounds when the Commissioners shall have expended a sum of thirty thousand pounds on the construction of the said dock and works;

A further sum of five thousand pounds when the Commissioners shall have expended a sum of forty-five thousand pounds on the construction of the said dock and works;
and

A further sum of five thousand pounds when the Commissioners shall have expended sixty thousand pounds on the construction of the said dock and works.

(2) The corporation may borrow any sums which they are by this Act authorised to contribute towards the construction of the dock and other works by this Act authorised on the security of the borough fund and borough rate or the district fund and general district rate of the borough or on the security of both the said funds and rates and the corporation shall pay off the said sums within sixty years of the date or dates of borrowing the same.

(3) The following sections of the great Yarmouth Corporation Act 1897 shall extend and apply to the exercise of the powers of borrowing by this Act conferred upon the corporation as if those sections were with any necessary modifications re-enacted in this Act namely:—

Section 101 (Mode of raising money);

Section 102 (Certain regulations of Public Health Act as to borrowing not to apply);

Section 103 (Provisions of Public Health Act as to mortgages to apply);

Section 105 (Mode of payment off of money borrowed);

Section 106 (Sinking fund);

Section 107 (Protection of lender from inquiry);

Section 108 (Corporation not to regard trusts);

Section 109 (Appointment of receiver);

Section 111 (Annual return to Local Government Board);

Section 112 (Application of money borrowed);

Section 120 (Audit of accounts);

Section 129 (Inquiries by Local Government Board):

Provided that the provisions contained in section 106 of the said Act of 1897 shall apply to the formation of sinking funds for the repayment of money borrowed under the Local Loans Act 1875 instead of section 15 of the last-mentioned Act.

(4) The corporation shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(5) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original

A.D. 1911. loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(6) The corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(7) The corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments ; or

(B) By means of a sinking fund ; or

(C) Out of moneys derived from the sale of land ; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(8) The Commissioners shall produce to the Commissioners of Inland Revenue a King's printers copy of this Act stamped with duty at the rate of two shillings and sixpence for every one hundred pounds of the twenty thousand pounds payable by the corporation as provided by this section and in default of such production within six months after the passing of this Act the duty with interest thereon at the rate of five per centum per annum shall become a debt from the Commissioners to His Majesty.

Lands &c. to
form part of
undertaking.

100. The dock and works by this Act authorised and any land or property powers rights estates or interests acquired by the Commissioners under or by virtue of this Act shall form part of the undertaking and may subject to the provisions of this Act be maintained and managed accordingly and subject as aforesaid the Commissioners shall have and may exercise and enjoy in over and upon the said dock and works and such land and property and in relation thereto all the rights powers and privileges granted to conferred upon or vested in the Commissioners under the Great Yarmouth Port and Haven Acts 1866 to 1911 or any of them.

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

101. A certificate in writing under the hand of the clerk to the Commissioners shall for all purposes be sufficient evidence of the appointment or removal of any harbour-master collector of tolls or other officer acting in the execution of this Act.

A.D. 1911.

Evidence of appointment and removal of harbour-master collector of tolls and officers.

102. The provisions of section 131 (Great Yarmouth Corporation to provide police for haven) of the Act of 1866 shall be read and construed as if the fish wharf undertaking and the dock and other works by this Act authorised and the shipping goods and other property for the time being therein were included within the provisions of that section.

Amendment of section 131 of Act of 1866.

103. As from the date of the passing of this Act the following sections of the Act of 1866 shall be and the same are hereby repealed (that is to say):—

Repeal of certain sections of Act of 1866.

Section 129 (Penalty for evading payment of rates);

Section 130 (Penalty for taking wrong rate);

Section 146 (Penalty for assaulting officers &c.).

104. — (1) The Commissioners may if they think fit in cases not within the Workmen's Compensation Act 1906 grant a gratuity of any sum or make pension or other allowance or payment to any of their officers or servants who may be disabled or injured in or may be retired from or become incapacitated through age permanent injury or other infirmity from continuing in the service of the Commissioners and on such terms and conditions as to contributions by such officers or servants or otherwise as the Commissioners may think fit and the Commissioners may grant a gratuity of any sum to the widow or family of any such officer or servant who may die in their service.

Commissioners may grant pensions &c.

(2) Every such gratuity pension allowance or payment shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had not as the case may be been disabled injured retired, or become incapacitated or died as aforesaid.

(3) If the Commissioners shall under the powers of this section make any scheme for the establishment of a superannuation or provident fund requiring contributions by such officers and servants such scheme shall not come into operation until the Commissioners shall in respect of that fund have been registered under the Friendly Societies Act 1896 and the provisions

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this section shall apply (A) as if the Commissioners were a society to which that Act applies and were the trustees of such society (B) as if the scheme were the rules of such society (C) as if the superannuation or provident funds were the funds of such society and (D) as if the contributors to the fund were the members of such society.

(4) Section 14 (Power to grant gratuities in certain cases) of the Act of 1907 is hereby repealed.

Power to
Commis-
sioners to
apply funds.

105. The Commissioners may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by the Great Yarmouth Port and Haven Acts 1866 to 1907 and which are not required for the purposes to which they are by the said Acts made specially applicable.

As to lands
of corpo-
ration and
construction
of dock.

106. The following provisions shall unless otherwise agreed in writing between the Commissioners and the corporation apply and have effect (that is to say) :—

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Commissioners shall not enter upon take use or acquire any land or property of the corporation (other than the fish wharf undertaking) otherwise than as provided by this section :

(2) Notwithstanding anything contained in this Act the Commissioners may at any time within the period of seven years from the passing of this Act or within such further period as the Commissioners and the corporation may agree and after the Commissioners shall have passed a resolution to proceed with the construction of the dock and have given six months' previous notice in writing to the corporation under the hand of their clerk enter upon the lands coloured respectively blue and yellow on the plan dated the first day of March one thousand nine hundred and eleven and referred to in the section of this Act of which the marginal note is "Power to stop up road" and which lands contain in the whole twenty-six acres

or thereabouts and may thereon construct the dock and works by this Act authorised to be constructed thereon and so soon as the construction of the dock and works shall have been substantially commenced the corporation shall convey the said lands coloured blue and yellow to the Commissioners without consideration. All turf and soil removed or excavated by the Commissioners from any part of the said lands coloured blue and yellow shall if so required by the corporation be delivered to the corporation but the corporation shall repay the Commissioners the amount (as certified by the consulting engineer of the Commissioners) by which the expense incurred by the Commissioners in so delivering the same shall exceed the expense which would have been incurred by the Commissioners in removing and depositing the same at sea. The corporation shall be entitled at any time prior to the expiration of the said notice to remove any buildings structures fences or erections standing or being on any part of the lands coloured blue and yellow: A.D. 1911.

(3) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the dock shall be constructed in the position shown on the said plan dated the first day of March one thousand nine hundred and eleven:

(4) As from the expiration or surrender of the present lease dated the seventeenth day of October one thousand nine hundred and one and made between the corporation of the one part and the Commissioners of the other part of the lands commonly known as the Ballast Wharf the piece of land coloured brown on the said plan dated the first day of March one thousand nine hundred and eleven and forming part of the said lands shall revert to the corporation and may be used by them as a wharf for loading or unloading goods of all descriptions. Provided always that for the period between the first day of October and the fifteenth day of December inclusive in every year the corporation shall permit the said piece of land to be used by the Commissioners as a wharf for

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

vessels engaged in the fishing trade only and shall not during such period permit other vessels to use the same and the Commissioners may notwithstanding anything contained in this Act during such period as aforesaid exercise in relation to the said piece of land the powers which the Commissioners are by this Act authorised to exercise with respect to the fish wharf undertaking including the levying and recovery of tolls. Provided also that the corporation shall during such period so far as practicable keep the said piece of land free from any goods belonging to or under the control of the corporation or place such goods in such position as the Commissioners may reasonably approve and arrange the same in such manner as that they will cause the least possible obstruction to the fishing trade for the time being carried on on the said piece of land:

- (5) As from the expiration or surrender of the said lease the corporation shall grant to the Commissioners a lease for 99 years at a rent of ten pounds per annum of the lands coloured purple on the said plan but the said lease shall provide that in the event of the said lands coloured purple ceasing at any time to be used by the Commissioners as a ballast wharf the said lands shall revert to the corporation:
- (6) The corporation shall prior to the opening of the dock for public use construct and properly kerb channel metal and sewer at their own cost suitable roads around and adjoining the lands coloured yellow on the said plan and each of the said roads shall be of a width of at least 50 feet and shall upon its completion be dedicated to the public and shall thereafter be lighted maintained and kept in good repair and condition by and at the expense of the corporation and on the said roads being so dedicated the Commissioners shall pay to the corporation the sum of one thousand pounds:
- (7) In the event of the construction of the dock and works connected therewith by this Act authorised rendering it necessary to divert or remove the Great Yarmouth Race Course the Commissioners shall pay to the

corporation the sum of five thousand pounds towards the expenses of such diversion or removal. If any question shall arise between the corporation and the Commissioners as to whether such diversion or removal has been so rendered necessary such question shall failing agreement be referred to and determined by a single arbitrator to be agreed upon between the parties or failing agreement appointed by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference: A.D. 1911.

- (8) The corporation shall produce to the Commissioners of Inland Revenue a King's printers copy of this Act stamped with duty at the rate of two shillings and sixpence for every one hundred pounds of the five thousand pounds payable by the Commissioners as provided by the last preceding subsection of this section and in default of such production within six months after the passing of this Act the duty with interest thereon at the rate of five per centum per annum shall become a debt from the corporation to His Majesty.

107. For the protection of the corporation the following provisions shall (unless otherwise agreed in writing between the corporation and the Commissioners) apply and have effect:—

For protection of corporation as to existing railway.

- (1) Such portions of the existing railway as are for the time being situate upon any road being a public highway or on any public quay shall be maintained so that the uppermost surface of the rail shall be on a level with the surface of the road and if at any time the corporation alter the level of any such road the Commissioners may and shall from time to time alter their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered:
- (2) The Commissioners shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the existing railway and the substructure upon which the same rest and if the Commissioners at any time make default in complying with this provision

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

they shall for every such offence be liable on summary conviction to a penalty not exceeding five pounds and in the case of a continuing offence to a further penalty not exceeding five pounds for every day after the first on which such default continues:

(3) The Commissioners shall if so required by the corporation pave and thereafter maintain and keep in good condition and repair the space between the rails of the existing railway and so much of the road or quay as extends eighteen inches beyond the rails of and on each side of such railway with such materials and in such manner as the corporation shall reasonably require. Provided always that if the Commissioners fail to comply with the provisions of this subsection the corporation if they think fit may themselves at any time after seven days' notice to the Commissioners open and break up the road or quay and do the work necessary for the repair and maintenance of the road or quay to the extent in this subsection above mentioned and the expense incurred by the corporation in so doing shall be repaid to them by the Commissioners. Provided always that the Commissioners and the corporation may enter into and carry into effect and alter renew or vary contracts agreements or arrangements with respect to the paving and keeping in repair of the whole or any portion of the roadway on which the existing railway is laid and the proportion to be paid by either of them of the expense of such paving and keeping in repair:

(4) No part of any carriage wagon or truck used on the existing railway or of the loading thereon shall extend beyond the outer edge of the wheels of such carriage wagon or truck more than twenty-four and a quarter inches on each side:

(5) The Commissioners shall not carry any passengers on the existing railway:

(6) The corporation may make such byelaws for the purpose of preventing so far as practicable nuisance or annoyance by the use of the existing railway as the corporation shall deem expedient:

(7) The provisions of the following sections of the Public Health Act 1875 (namely):— A.D. 1911.

Section 182 (Authentication and alteration of bye-laws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws); and

Section 185 (Byelaws to be printed &c.);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the corporation under the powers of this section. Provided that in the application of such provisions the Board of Trade shall be substituted for the Local Government Board:

(8) If any difference shall arise between the corporation and the Commissioners under this section such difference shall unless otherwise agreed be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers and subject thereto in accordance with the provisions of the Arbitration Act 1889.

108.—(1) The Commissioners may subject to the provision herein-after contained make byelaws for all or any of the following purposes (that is to say):— Byelaws.

(A) For regulating the cleansing lighting watching and occupying of the fish wharf undertaking and the dock and any conveniences at the said undertaking or dock;

(B) For preventing nuisances obstructions or annoyances on or at the fish wharf undertaking or the dock or the approaches by land or by water thereto;

(C) For regulating the depositing and removing of fish and of baskets nets and other things of or appertaining to fish or fishing vessels on the public quays within the haven and for enforcing the removal of obstructions and nuisances from the same and keeping the same clear and clean; and

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

- (D) For regulating the user of the fish wharf undertaking and the dock and any works and conveniences of the Commissioners other than the existing railway ;

and may by such byelaws impose penalties not exceeding five pounds for each offence or in the case of a continuing offence two pounds for each day on which the offence is continued after conviction thereof :

Provided that nothing herein contained shall authorise the Commissioners to make a byelaw to prevent the deposit on the public quays of fish or of baskets nets or other things of or appertaining to fish or fishing vessels between the hours of six o'clock in the morning and ten o'clock in the evening of every Sunday or between the hours of six o'clock in the morning and six o'clock in the evening of all other days except Sundays.

(2) Byelaws made under this section shall not take effect until confirmed by the Board of Trade but no other confirmation shall be necessary.

(3) A byelaw shall not be confirmed under this section—

(A) Unless the Commissioners have given notice of their intention to apply for confirmation of the byelaw in one or more local newspapers circulating in the borough at least one month before the application is made and have during such month kept a similar notice posted up outside the principal office of the Commissioners ; and

(B) Unless for at least one month before the application is made a copy of the proposed byelaw has been kept at the principal office of the Commissioners and has been open to inspection without payment during reasonable hours ; and

(C) Unless copies of the proposed byelaw have been during such month kept at the principal office of the Commissioners for sale to parties applying for the same at a price not exceeding one shilling each ; and

(D) Unless a copy of the proposed byelaw shall have been sent to the Board of Trade at least one month before the application is made.

(4) The Commissioners shall cause copies of all byelaws in force to be printed and sold to any person desiring copies at a price not exceeding one shilling each. A.D. 1911.

(5) A copy of any byelaw made by the Commissioners purporting to be printed by direction of the Commissioners shall unless the contrary be proved be evidence of the byelaw and of its proper making and confirmation.

109. Notwithstanding the repeal so far as is by this Act provided of the Fish Wharves Act of 1866 and of the Order of 1890 and except only as is by this Act otherwise expressly provided everything before the repeal thereof done suffered and confirmed respectively under or by that Act and Order or either of them shall be as valid as if the repeal thereof had not happened and the repeal thereof and the operation of this Act respectively shall accordingly be subject and without prejudice to everything so done suffered and confirmed respectively and to all rights liabilities claims and demands both present and future which if the repeal had not happened would be incident to or consequent on everything so done suffered and confirmed respectively. Provided that the generality of this provision shall not be restricted by any of the other provisions of this Act. General saving of rights under repealed Act and Order.

110. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Crown rights.

111. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commissioners. Costs of Act.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
TAKEN BY THE COMMISSIONERS.

Area.	Numbers on deposited Plans.						
County borough of Great Yarmouth	1	2	3	4	5	6	7

SECOND SCHEDULE.

£ s. d.

1. For every vessel entering into or departing from the haven (not being a vessel otherwise charged in this schedule for such entering or departing):—

For every such vessel under the burden of 150 tons per register ton	-	-	-	-	-	-	-	-	0	0	4
For every such vessel of the burden of 150 tons and upwards per register ton	-	-	-	-	-	-	-	-	0	0	8

2. For every vessel entering into or departing from the haven laden with coals only:—

For every such vessel under the burden of 200 tons per register ton	-	-	-	-	-	-	-	-	0	0	4
For every such vessel of the burden of 200 tons and upwards per register ton	-	-	-	-	-	-	-	-	0	0	6

(The above tolls shall not be payable on any such vessel departing from the haven and having paid the toll on entering therein.)

3. For every vessel (other than a vessel used for the purpose of towing vessels) entering into the haven for refuge only under the burden of 150 tons per register ton

Of the burden of 150 tons per register ton	-	-	-	-	-	-	-	-	0	0	4
Of the burden of 150 tons and upwards per register ton	-	-	-	-	-	-	-	-	0	0	8

(This toll to be charged but once in respect of the same voyage.)

For every steam vessel (other than a vessel used for the purpose of towing vessels) entering into the haven for the sole purpose of taking in bunker coals per register ton

ton	-	-	-	-	-	-	-	-	0	0	4
-----	---	---	---	---	---	---	---	---	---	---	---

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

£ s. d. A.D. 1911.

4. For every excursion or pleasure vessel propelled by steam or other mechanical power belonging to or registered at the port and entering or leaving the haven with or landing or embarking passengers therein from or for any place distant therefrom not exceeding twenty-five miles per register ton -

0 0 4

(The above toll shall not be payable on any such vessel departing from the haven and having paid the toll on entering.)

For every such excursion or pleasure vessel in addition to the toll above mentioned:—

In respect of every passenger carried or conveyed or landing or embarking -

0 0 1

5. For every vessel propelled by steam or other mechanical power entering or leaving the haven with or landing or embarking passengers therein from or for any place distant twenty-five miles and upwards from the port:—

For every such vessel under the burden of 150 tons per register ton -

0 0 4

For every such vessel of the burden of 150 tons and upwards per register ton -

0 0 8

(The above tolls shall not be payable on any such vessel departing from the haven and having paid the toll on entering.)

For every such vessel in addition to the tolls above mentioned:—

In respect of every passenger carried or conveyed or landing or embarking -

0 0 1

6. For every vessel propelled by steam or other mechanical power (except ferry boats propelled by oars and used for transporting passengers from one side of the haven to the other) plying in the haven for the purpose of carrying or conveying passengers to or from any part of the haven and landing or embarking passengers in any part of the haven for each year commencing on the twenty-fifth day of March -

15 0 0

7. For every vessel propelled by steam or other mechanical power entering into or departing from the haven and towing vessels either into or out of the haven for each such entry or departure per register ton -

0 5 0

Provided that no such vessel shall at any one time pay for each such entry or departure a less sum than -

1 0 0

(This toll shall not be payable on any such vessel departing from the haven and having paid the toll on entering therein.)

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

£ s. d.

8. For every vessel whether propelled by steam or other mechanical power and used for the purpose of towing vessels entering into or departing from the haven for any other purpose than that of towing vessels for each such entry or departure - - - - - 1 0 0

(This toll shall not be payable on any such vessel departing from the haven and having paid the toll on entering therein.)

9. For every vessel whether propelled by steam or other mechanical power entering into or departing from the haven and used for the purpose of towing vessels for each year commencing on the twenty-fifth day of March and to be due and payable in advance on the day in each respective year in which the vessel shall for the first time in that year enter into or depart from the haven - - - - - 10 0 0

Provided that any such vessel having paid such yearly toll shall be exempt from any other toll in respect of such vessel for entering into or departing from the haven during such year whether engaged in towing vessels or not.

10. For every lighter boat or other craft departing from or entering into the haven and conveying goods wares or merchandise to or from any vessel in Yarmouth Roads within the port if the vessel do not enter into or depart from the haven for each trip from and to or as the case may be to and from the haven per ton of such goods wares or merchandise carried - - - - - 0 0 4

11. For every vessel engaged in fishing entering into or departing from the haven at any time during the year ending the twenty-fifth day of March :—

If propelled by steam or other mechanical power per register ton - - - - -	0 0 4
Or on clearing by the year - - - - -	3 0 0
If propelled in any other way per register ton - - - - -	0 0 3
Or on clearing by the year - - - - -	1 10 0

12. For every vessel prosecuting the spring herring fishing or the mackerel fishing or the midsummer herring fishing during all or any of the months from January to July inclusive in any year and entering into or departing from the haven at any time during all or any of such months and which shall not have paid all or any of the tolls under the last preceding paragraph shall pay as a composition in full of tolls for such vessels for all or any part of such period :—

If propelled by steam or other mechanical power - - - - -	1 0 0
If propelled in any other way - - - - -	0 10 0

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

	£	s.	d.	A.D. 1911.
13. Wolders shrimp boats and the like per annum - -	0	10	0	—
(The tolls under the above paragraphs 11, 12 and 13 are to be due and payable on the day in any year on which the vessel shall for the first time in that year enter into or depart from the haven.)				
14. For every vessel moored in the dock or at the fish wharf for every day on which such vessel is not loading or unloading per register ton - - - - -	0	0	1	
15. For every vessel remaining in the haven (elsewhere than in the dock or at the fish wharf) beyond one month whether for trade or for refuge for every additional month after the first month a fraction of a month to be considered as one month per register ton - - - - -	0	0	2	

THIRD SCHEDULE.

	£	s.	d.
Acids (not otherwise enumerated herein) - - per ton	0	1	0
Ale porter beer cider perry oil (not otherwise enumerated herein) and vinegar - per 108 gallons	0	0	6
" " " - per 72 "	0	0	4
" " " - per 54 "	0	0	3
" " " - per 36 "	0	0	2
" " " - per 18 "	0	0	1
" " " in bottles per dozen	0	0	1
Alkali - - - - - per ton	0	1	0
Arsenic - - - - - "	0	1	0
Asphalte - - - - - "	0	0	6
Bagging bags and sacks - - - - - "	0	1	0
Bricks and tiles—			
Bricks (best) - - - - - per thousand	0	1	6
Bricks (common) - - - - - "	0	1	0
Bath or fire bricks - - - - - "	0	2	0
Fire brick lumps - - - - - per ton	0	2	0
Glazed or fancy tiles - - - - - per thousand	0	1	0
Gutter pan paving and roofing tiles - - - - - "	0	1	0
Sinks drain pipes and the like - - - - - per ton	0	1	0
All other glazed sanitary goods - - - - - "	0	2	0
Carbide of calcium - - - - - "	0	2	6
Carriages—			
Four-wheeled carriages - - - - - each	0	2	6
Two " " - - - - - "	0	1	9
Motor cars - - - - - "	0	5	0

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

									£	s.	d.	
Cattle—												
Horses	-	-	-	-	-	-	-	each	0	0	6	
Bulls oxen cows	-	-	-	-	-	-	-	"	0	0	4	
Calves	-	-	-	-	-	-	-	"	0	0	2	
Sheep	-	-	-	-	-	-	-	per score	0	1	0	
Lambs	-	-	-	-	-	-	-	"	0	0	6	
Pigs	-	-	-	-	-	-	-	each	0	0	0½	
Clays—												
Pipe-clay	-	-	-	-	-	-	-	per ton	0	0	6	
Fire-clay	-	-	-	-	-	-	-	"	0	0	6	
China-clay	-	-	-	-	-	-	-	"	0	0	6	
Common clay	-	-	-	-	-	-	-	"	0	0	2	
Cloth haberdashery and the like not enumerated herein									"	0	2 0	
Coal	-	-	-	-	-	-	-	"	0	0	6	
Coke	-	-	-	-	-	-	-	"	0	0	6	
Culm	-	-	-	-	-	-	-	"	0	0	6	
Cinders	-	-	-	-	-	-	-	"	0	0	6	
Breeze	-	-	-	-	-	-	-	"	0	0	6	
Gasworks refuse	-	-	-	-	-	-	-	"	0	0	6	
Clinkers	-	-	-	-	-	-	-	"	0	0	6	
Copra	-	-	-	-	-	-	-	"	0	1	0	
Coprolites	-	-	-	-	-	-	-	"	0	0	6	
Cotton and wool	-	-	-	-	-	-	-	per pack of 240 lbs.	0	0	8	
Cutch	-	-	-	-	-	-	-	per ton	0	1	0	
Eggs	-	-	-	-	-	-	-	"	0	2	0	
Empties—												
Barrels	-	-	-	-	-	-	-	each	0	0	1	
Bottles	-	-	-	-	-	-	-	per gross	0	0	2	
Bowls fishing	-	-	-	-	-	-	-	each	0	0	1	
Boxes	-	-	-	-	-	-	-	"	0	0	1	
Casks	-	-	-	-	-	-	-	"	0	0	1	
Fishery stock	-	-	-	-	-	-	-	per ton	0	1	6	
Fish fresh or uncured—												
Herrings in boxes	-	-	-	-	-	-	-	per box	0	0	3	
Herrings	-	-	-	-	-	-	-	per thousand	0	0	3	
"	-	-	-	-	-	-	-	per cran	0	0	3	
"	-	-	-	-	-	-	-	per last (13200)	0	2	6	
Mackerel	-	-	-	-	-	-	-	per hundred	0	0	2	
Codfish	-	-	-	-	-	-	-	per score	0	0	2	
Fish in packages									per package	0	0 3	
Glass or earthenware	-	-	-	-	-	-	-	per ton	0	2	0	
Glass (broken)	-	-	-	-	-	-	-	"	0	1	0	

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

								£	s.	d.	A.D. 1911.
Grain and seeds—											
Dross	-	-	-	-	-	-	-	per ton	0	1	0
Wheat	-	-	-	-	-	-	-	per quarter	0	0	2
Barley	-	-	-	-	-	-	-	"	0	0	2
Malt	-	-	-	-	-	-	-	"	0	0	2
Oats	-	-	-	-	-	-	-	"	0	0	2
Beans	-	-	-	-	-	-	-	"	0	0	2
Peas	-	-	-	-	-	-	-	"	0	0	2
Tares	-	-	-	-	-	-	-	"	0	0	2
Buck wheat	-	-	-	-	-	-	-	"	0	0	2
Indian corn	-	-	-	-	-	-	-	"	0	0	2
Lentils	-	-	-	-	-	-	-	"	0	0	2
Millet	-	-	-	-	-	-	-	"	0	0	2
Canary	-	-	-	-	-	-	-	"	0	0	2
Mustard	-	-	-	-	-	-	-	"	0	0	2
Flax	-	-	-	-	-	-	-	"	0	0	2
Rape	-	-	-	-	-	-	-	"	0	0	2
Cotton	-	-	-	-	-	-	-	"	0	0	2
Linseed	-	-	-	-	-	-	-	"	0	0	2
Rye grass	-	-	-	-	-	-	-	"	0	0	2
Locust beans	-	-	-	-	-	-	-	per ton	0	0	8
Farina	-	-	-	-	-	-	-	"	0	0	8
Flour	-	-	-	-	-	-	-	"	0	0	8
Kositos	-	-	-	-	-	-	-	"	0	1	0
Meal	-	-	-	-	-	-	-	"	0	1	0
Middlings	-	-	-	-	-	-	-	"	0	1	0
Sharps	-	-	-	-	-	-	-	"	0	1	0
Pollard and bran	-	-	-	-	-	-	-	"	0	1	0
Clover and trefoil	-	-	-	-	-	-	-	"	0	1	0
All other seeds not before enumerated	-	-	-	-	-	-	-	"	0	1	0
Groceries and all other grocery goods not enumerated herein—											
Sugar	-	-	-	-	-	-	-	per ton	0	1	0
Dried fruits	-	-	-	-	-	-	-	"	0	1	0
Bacon	-	-	-	-	-	-	-	"	0	1	0
Cheese	-	-	-	-	-	-	-	"	0	1	0
Butter	-	-	-	-	-	-	-	"	0	1	0
Pork	-	-	-	-	-	-	-	"	0	1	0
Beef	-	-	-	-	-	-	-	"	0	1	0
Mutton	-	-	-	-	-	-	-	"	0	1	0
Hams	-	-	-	-	-	-	-	"	0	1	0
Tongues	-	-	-	-	-	-	-	"	0	1	0
Salt (except salt for fisheries)	-	-	-	-	-	-	-	"	0	1	0
Tallow	-	-	-	-	-	-	-	"	0	1	0
Soap	-	-	-	-	-	-	-	"	0	1	0

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

	£	s.	d.
Groceries and all other grocery goods not enumerated herein— <i>cont.</i>			
Candles - - - - - per ton	0	1	0
Tobacco - - - - - "	0	1	0
Alum - - - - - "	0	1	0
Kelp - - - - - "	0	1	0
Mustard - - - - - "	0	1	0
Soda - - - - - "	0	1	0
Starch - - - - - "	0	1	0
Saccharine - - - - - "	0	2	0
Rice - - - - - "	0	1	0
„ uncleaned (used in manufactures) - - - - - "	0	0	6
Tea - - - - - per cwt.	0	0	1½
Coffee - - - - - "	0	0	1½
Cocoa - - - - - "	0	0	1½
Chocolate - - - - - "	0	0	1½
Spices - - - - - "	0	0	1½
Oranges - - - - - "	0	0	1
Lemons - - - - - "	0	0	1
Molasses - - - - - per ton	0	1	0
Madder - - - - - per cwt.	0	0	1
Green groceries—			
Potatoes - - - - - per ton	0	0	6
Onions - - - - - "	0	0	6
Apples - - - - - per bushel	0	0	0½
Pears - - - - - "	0	0	0½
Green fruit - - - - - "	0	0	0½
Hops - - - - - per ton	0	6	0
Beet - - - - - "	0	0	6
Turnips - - - - - "	0	0	6
Carrots and the like roots - - - - - "	0	0	6
Hardware - - - - - "	0	2	0
Hay straw cinquefoil and clover - - - - - "	0	1	0
Hemp - - - - - "	0	1	0
Flax - - - - - "	0	1	0
Cordage - - - - - "	0	1	0
Yarn - - - - - "	0	1	0
Herrings—			
Salted or otherwise cured per barrel box or kit			
- - - - - not exceeding 2-cwt.	0	0	3
Ditto - - - - - exceeding 2-cwt.	0	0	4
Salted in bulk - - - - - per last (13200)	0	2	0
Household furniture - - - - - per barrel bulk	0	0	1
Ice - - - - - per ton	0	0	4

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

	£	s.	d.	A.D. 1911.
Leather &c.—				
Manufactured goods - - - - - per ton	0	2	0	
Tanned hides (leather and calf skins) - - - - - „	0	2	0	
Raw „ - - - - - „	0	2	0	
Pelts - - - - - per 100	0	0	5	
Tan - - - - - per ton	0	1	0	
Bark - - - - - „	0	1	0	
Lime - - - - - „	0	0	6	
Machinery - - - - - „	0	2	6	
Husbandry and other utensils - - - - - „	0	1	8	
do. - - - - - per barrel bulk	0	0	3	
Manures—				
Guano - - - - - per ton	0	0	10	
Artificial manures - - - - - „	0	0	10	
Agricultural salt - - - - - „	0	0	10	
Bones - - - - - „	0	0	10	
Bone dust - - - - - „	0	0	10	
Herring scales and the like - - - - - „	0	0	10	
Superphosphate - - - - - „	0	0	8	
Spent oxide - - - - - „	0	0	6	
Guano phosphate - - - - - „	0	1	0	
Manure manufactured - - - - - „	0	0	8	
Muriate of potash - - - - - „	0	0	8	
Sulphate of ammonia - - - - - „	0	2	6	
Nitrate of potash - - - - - „	0	1	0	
„ soda - - - - - „	0	1	0	
Nitre cake - - - - - „	0	1	0	
Kanit salt - - - - - „	0	0	6	
Potash salt - - - - - „	0	0	6	
Mustard cake - - - - - „	0	0	8	
Street and stable manures and night soil - - - - -			Free	
Basic slag - - - - - per ton	0	0	6	
Ores - - - - - „	0	0	6	
Pyrites - - - - - „	0	0	6	
Bog ore - - - - - „	0	0	6	
Burnt ore - - - - - „	0	0	6	
Chrome ore - - - - - „	0	0	6	
Mineral ore - - - - - „	0	0	6	
Sulphur ore - - - - - „	0	0	6	
Nickel ore - - - - - „	0	0	6	
Antimony ore - - - - - „	0	0	6	
Metals—				
Bar - - - - - per ton	0	1	0	
Bolt - - - - - „	0	1	0	
Rod - - - - - „	0	1	0	

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

									£	s.	d.
Metals—cont.											
Iron manufactured	-	-	-	-	-	-	-	per ton	0	1	0
„ castings	-	-	-	-	-	-	-	„	0	1	0
„ pig	-	-	-	-	-	-	-	„	0	0	8
„ old	-	-	-	-	-	-	-	„	0	0	8
Metals scrap	-	-	-	-	-	-	-	„	0	0	8
Copper	-	-	-	-	-	-	-	„	0	1	0
Lead	-	-	-	-	-	-	-	„	0	1	0
Pewter	-	-	-	-	-	-	-	„	0	1	0
Brass	-	-	-	-	-	-	-	„	0	1	0
Tin	-	-	-	-	-	-	-	„	0	1	0
Hoops	-	-	-	-	-	-	-	„	0	1	0
Plates	-	-	-	-	-	-	-	„	0	1	0
Anvils vices &c.	-	-	-	-	-	-	-	„	0	1	0
Iron gas pipes	-	-	-	-	-	-	-	„	0	1	0
Cogs rails and crossings	-	-	-	-	-	-	-	„	0	1	0
Iron dross or kentledge	-	-	-	-	-	-	-	„	0	1	0
Nails nuts and bolts	-	-	-	-	-	-	-	„	0	1	0
Retorts	-	-	-	-	-	-	-	„	0	1	0
Iron rail chairs	-	-	-	-	-	-	-	„	0	1	0
All other metals not enumerated herein								„	0	1	0
Mineral waters	-	-	-	-	-	-	-	„	0	1	0
Moss litter	-	-	-	-	-	-	-	„	0	0	6
Musical instruments—											
Pianofortes	-	-	-	-	-	-	-	each	0	1	6
American organs	-	-	-	-	-	-	-	„	0	1	0
Organs	-	-	-	-	-	-	-	„	0	5	0
Harpsichords	-	-	-	-	-	-	-	„	0	1	6
Harps	-	-	-	-	-	-	-	„	0	1	6
Bass viols and cellos	-	-	-	-	-	-	-	„	0	1	6
Other musical instruments								per ton	0	2	6
Oils &c.—											
Creosote	-	-	-	-	-	-	-	per ton	0	1	0
Paraffin	-	-	-	-	-	-	-	„	0	3	0
Petroleum	-	-	-	-	-	-	-	„	0	3	0
Petrol	-	-	-	-	-	-	-	„	0	3	0
Benzoline	-	-	-	-	-	-	-	„	0	3	0
Turpentine and other inflammable oils	-	-	-	-	-	-	-	„	0	3	0
Linseed	-	-	-	-	-	-	-	„	0	3	0
Pitch	-	-	-	-	-	-	-	„	0	1	0
Tar	-	-	-	-	-	-	-	„	0	1	0
Grease	-	-	-	-	-	-	-	„	0	1	0
Resin	-	-	-	-	-	-	-	„	0	1	0
Paint	-	-	-	-	-	-	-	„	0	1	0

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

	£	s.	d.	A.D. 1911,
Oils &c.— <i>cont.</i>				
Tar water to be used in any manufacture (ammoniacal liquor and the like) - - - per ton	0	0	2	
Oil of tar - - - - - "	0	0	4	
Gas tar - - - - - "	0	0	3	
Oil cakes - - - - - "	0	0	10	
Rape cakes - - - - - "	0	0	10	
Linseed - - - - - "	0	0	10	
Cotton - - - - - "	0	0	10	
Paper &c.—				
Straw boards - - - - - per ton	0	1	0	
Pulp - - - - - "	0	1	0	
Paper new - - - - - "	0	1	0	
„ old - - - - - "	0	0	6	
Rags old rope old nets and the like - - - "	0	0	8	
Salt for fisheries - - - - - "	0	0	6	
Ditto in barrels - - - - - per cwt.	0	0	2	
Salted fish - - - - - per ton	0	1	0	
Stone &c.—				
Stone - - - - - per ton	0	0	8	
Slate - - - - - "	0	0	8	
Plaster of Paris - - - - - "	0	0	8	
Cement - - - - - "	0	0	8	
Cement stone - - - - - "	0	0	8	
Granite (broken) or the like for macadam - - - "	0	0	3	
Tar—macadam and the like - - - - - "	0	0	6	
Granite cubes - - - - - "	0	0	3	
„ setts - - - - - "	0	0	3	
„ kerbs - - - - - "	0	0	3	
Clay retorts - - - - - "	0	1	0	
Rockery stone - - - - - "	0	0	6	
Rotten stone - - - - - "	0	1	0	
Whiting - - - - - "	0	0	8	
Marl - - - - - "	0	0	2	
Loam - - - - - "	0	0	2	
Mould - - - - - "	0	0	2	
Gravel - - - - - "	0	0	2	
Sand - - - - - "	0	0	2	
Shingle - - - - - "	0	0	2	
Uncallow - - - - - "	0	0	2	
Chalk - - - - - "	0	0	2	
Mud for manufacturing uses - - - - - "	0	0	2	
Grindstones - - - - - each	0	1	0	
Burr stones - - - - - "	0	1	0	
Marble - - - - - per ton	0	2	0	

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

			£	s.	d.
Vitriol	-	-	0	0	4
Wines and spirits	-	-	0	1	0
	-	-	0	0	6
	-	-	0	0	4
	-	-	0	0	1
	-	-	0	0	0½
	-	-	0	0	1
Wood—					
Oak	-	-	0	1	0
Elm	-	-	0	1	0
Pine	-	-	0	1	0
Beech	-	-	0	1	0
Deals	-	-	0	1	0
Battens	-	-	0	1	0
Lathwood	-	-	0	1	0
Pipe staves	-	-	0	1	0
Firewood	-	-	0	1	0
Wood for boxes	-	-	0	1	0
Fir and other descriptions of wood not enumerated herein	-	-	0	1	0
Mahogany	-	-	0	1	0
Teak wood	-	-	0	1	0
Lignum vitæ	-	-	0	1	0
Fustic	-	-	0	1	0
Logwood	-	-	0	1	0
Rosewood	-	-	0	1	0
Boat hooks	-	-	0	0	6
Laths (plasterers')	-	-	0	0	8
Oars	-	-	0	1	8
Hoops	-	-	0	1	0

Animals fish or goods imported and shifted to another vessel
for exportation to the original port of destination to pay
one toll only on importation and exportation.

Animals fish or goods imported and unloaded from any
vessel entering for refuge only and reloaded by the same
vessel for exportation to its original port of destination. Free

Animals fish and goods loaded from any wharf into any
vessel lighter or keel and carried to another wharf and
unloaded there within the haven one-fourth part of the
tolls from time to time charged in respect of animals fish
and goods imported or exported.

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

All goods not particularly enumerated in the above table or schedule :—

Light goods	- - - - -	per barrel bulk	£	s.	d.
Heavy goods	- - - - -	per ton	0	1	4
Salvage goods	- - - - -	per ton	0	1	0

In charging the tolls on fish and goods the gross weight or measurement to be taken and for any less weights measures and quantities than those above specified in this schedule a proportion of the respective tolls shall be charged.

Five cubic feet not exceeding two-and-a-half hundredweight to be rated as a barrel bulk but when the weight of five cubic feet is greater than two-and-a-half hundredweight then two-and-a-half hundredweight to be rated as a barrel bulk.

FOURTH SCHEDULE.

1. For every vessel (except sea-going vessels) navigating or using the Rivers Yare Bure or Waveney or any part of either of such rivers for the purpose of carrying animals fish goods or passengers thereon and for every vessel let lent hired or engaged for gift pay hire reward or promise of payment and navigating or using any part of either of the said rivers :—

If propelled by steam or other mechanical power per register ton or at the option of the Commissioners per ton burden or carrying power a fraction of a ton being considered as one ton per annum - - - - - 0 2 6

If propelled in any other way per register ton or at the option of the Commissioners per ton burden or carrying power a fraction of a ton being considered as one ton per annum - - - - - 0 1 0

2. For every sea-going vessel navigating or using the Rivers Yare Bure or Waveney or any part of either of such rivers for the purpose of carrying animals fish or goods or any passenger thereon or for gift pay hire reward or promise of future payment let lent hired or engaged for purposes of pleasure there shall be paid the following tolls (that is to say) :—

In respect of vessels making a user of the said rivers (whether using the same river each time or not)

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 Geo. 5.]
Act, 1911.

A.D. 1911.

£ s. d.

not more than four times in the year for each such user—

If the vessel be propelled by steam or other mechanical power per register ton - - - 0 0 6

If propelled in any other way per register ton - 0 0 3

In respect of vessels making a user of the said rivers (whether using the same river each time or not) more than four times in the year there shall be paid for the year whatever the number of users—

If the vessel be propelled by steam or other mechanical power per register ton - - - 0 2 6

If propelled in any other way per register ton - 0 1 0

(The above tolls under paragraph 2 in respect of any user shall be payable at the commencement of a user and vessels making four or more users in a year shall nevertheless pay in respect of the first four users in the same way as vessels not making more than four users but so that every toll paid in respect of such user shall be deemed to be part payment for the year) A user of a river shall be deemed to commence when the vessel enters a river from a sea voyage and to determine when the vessel leaves the river for a sea voyage.

3. For every vessel navigating or using the Rivers Yare Bure or Waveney or any part of either of such rivers and kept exclusively for the purposes of pleasure by the owner thereof and not kept for the purpose of profit or of being let lent hired or engaged for gift pay hire reward or promise of payment the onus of proof that such vessel is kept exclusively for purposes of his own pleasure and not for profit being on the owner of such vessel:—

For every such vessel under five tons measurement per annum - - - - -	0 10 0
Of five tons and under ten tons measurement per annum	1 0 0
Of ten tons and under twenty tons measurement per annum - - - - -	1 10 0
Of twenty tons measurement and upwards per annum -	2 0 0

(For the purposes of this schedule a year shall be deemed to commence on the 25th day of March and end on the next ensuing 24th day of March and the above tolls under paragraphs 1 2 and 3 shall be due and payable on the day in each year on which the vessel shall for the first time be used or navigated in that year on any part of either of the said rivers and shall be payable only

[1 & 2 GEO. 5.] *Great Yarmouth Port and Haven* [Ch. xcix.]
Act, 1911.

£ s. d. A.D. 1911.

in respect of the river on which such vessel shall be navigated or used for the first time in that year but the tolls under the third paragraph of this schedule shall not be payable by any vessel which shall for the same year have paid any toll under the first or second paragraph in this schedule.)

4. For every vessel moored in the Rivers Yare Bure or Waveney or any part of either of such rivers and laid by and unused or used otherwise than for the purpose of navigation in respect of which no toll under any other part of this schedule shall have been paid during any year as defined in the last preceding paragraph:—

For each six months or any fractional part of six months not being less than one month.	}	One half of the tolls respectively authorised by paragraphs 1 2 or 3 of this schedule as the case may be.
---	---	---

5. For every vessel navigating or using any part of either of the said Rivers Yare Bure or Waveney and carrying or conveying passengers thereon in addition to the above tolls:—

In respect of every passenger so carried or conveyed - 0 0 1

(This toll shall be due and payable once only in respect of the same passenger carried or conveyed on the same day on the same vessel on any part of either of the said rivers.)

RIVER TOLLS ON ANIMALS FISH AND GOODS.

One-half part of the tolls on animals fish and goods as respectively specified in the Third Schedule to this Act.

FIFTH SCHEDULE.

						Maximum.
						s. d.
Herrings fresh or uncured	-	-	-	-	per 1000	0 3
" " "	-	-	-	-	per cran	0 3
" " "	-	-	-	-	per last (13200)	2 6
" in boxes	-	-	-	-	per box containing not exceeding 250 herrings	0 1
" " "	-	-	-	-	exceeding 250 "	0 2
Mackerel	-	-	-	-	per hundred	0 2

[Ch. xcix.] *Great Yarmouth Port and Haven* [1. & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

		Maximum.	
		s.	d.
Codfish	per score	0	2
Fish in packages	per package	0	3
Herrings salted or otherwise cured	per barrel box or kit not exceeding two cwt.	0	2
Herrings salted or otherwise cured	per barrel box or kit exceeding two cwt.	0	3
Herrings salted in bulk	per last (13200)	1	6
Ice	per ton	0	2
Salt for fisheries	„	0	3
Salt in barrels	per cwt.	0	1
Salted fish	per ton	0	6
Coal coke culm cinders or breeze	„	0	3
Empty barrels	each	0	0½
„ boxes	„	0	0½
„ casks	„	0	0½
„ bowls (fishing)	„	0	0½
Fishing stock (except empties)	per ton	1	0
For every basket swill ped pottle box tub trunk or barrel left on any wharf for more than six hours and not stowed in any warehouse or recognised swill ground after the first six hours at the rate per hour of		0	0½

All other fish and goods not particularly enumerated in this schedule such reasonable tolls as the Commissioners shall from time to time order and direct but in no case shall such tolls exceed one half of the tolls specified on fish and goods as respectively set out in the Third Schedule to this Act in respect of any other similar fish and goods.

In charging the tolls on fish and goods the gross weight measurement or quantity to be taken and for any less weights measures and quantities a proportion of the respective tolls shall be charged.

For the use of any part of the fish wharf undertaking or of any wharf (other than a private owner's wharf) for the purpose of salting icing or packing fish intended for delivery outside the borough and whether despatched by rail or otherwise—

For every barrel box tub or trunk of fish so salted iced s. d.
 or packed - - - - - 0. 1.

For the use of any such wharf as last aforesaid for any other purpose such reasonable tolls as the Commissioners shall from time to time determine.

SIXTH SCHEDULE.

A.D. 1911.

ENACTMENTS SAVED FROM REPEAL.

The Great Yarmouth Fish Wharves Act 1866.

1. This Act may for all purposes be cited as the Great Yarmouth Fish Wharves Act 1866. Short title.

41. The corporation may from time to time appropriate so much as they think fit of their land on the east bank of the haven for a public quay with if they think fit a roadway over the same and respectively of such width and length as the corporation think fit and subject to such rights of using parts thereof for such purposes connected with the trade and shipping of the port and on such terms pecuniary and otherwise and conditions in all respects as the corporation from time to time think fit but not so as to interfere with the passage next the haven within ten feet of the quay head or high-water mark. Power for corporation to appropriate land on east side of haven for public quay.

42. The corporation and the Commissioners may from time to time make and carry into effect any agreements with respect to any such appropriation rights purposes terms and conditions and all incidental matters and with respect to the making maintaining and lighting by the Commissioners of any new quay and roadway and the approaches thereto and also with respect to the vesting in the Commissioners of any land so appropriated. Agreements between corporation and Haven Commissioners as to the appropriation.

67. The corporation may from time to time appoint and pay or join in the appointment or payment of a person or persons to collect register and give publicity to any facts observations and statistics that may tend to elucidate the natural history of the herring and other salt water fish or improve the methods of catching and curing fish or the vessels nets and other things used in the fisheries or that may in any other manner tend to promote the fisheries. Fishery officer.

79. Nothing in this Act contained shall authorise the corporation to take use or in any manner interfere with any land soil tenement or hereditament or any right of whatsoever nature belonging to or enjoyed or exerciseable by Her Majesty in right of Her Crown without the previous consent in writing of the Commissioners of Her Majesty's Woods Forests and Land Revenues or one of them (and which consent they or he may give) or shall divest take away lessen prejudice or alter any estate right privilege power or authority vested in or enjoyed or exerciseable by Her Majesty Her heirs or successors. Saving rights of the Crown.

80. Except only as is by this Act expressly provided nothing in this Act shall take away lessen prejudice or alter any of the estates Saving rights of Haven Commissioners.

[Ch. xcix.] *Great Yarmouth Port and Haven* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. rights interests jurisdictions powers authorities or privileges of the Commissioners.

Saving rights of corporation.

81. Except only as is by this Act expressly provided nothing in this Act shall take away lessen prejudice or alter any of the estates rights interests jurisdictions franchises powers authorities customs immunities or privileges of the corporation.

The Great Yarmouth Fish Wharf Order 1890.

Short title.

1. This Order may be cited as the Great Yarmouth Fish Wharf Order 1890 and this Order together with the Great Yarmouth Fish Wharves Act 1866 (in this Order called the Act of 1866) shall be read and construed as one Act or Order.

Inspector of fish to have certain powers of inspector of nuisances.

17. The inspector of fish or other officer appointed by the corporation in that behalf shall with reference to the inspection and examination of fish and the seizure and carrying away of fish appearing to him to be diseased or unsound or unwholesome or unfit for the food of man have all the powers conferred upon inspectors of nuisances by section 116 of the Public Health Act 1875 and sections 117 118 and 119 of that Act shall extend and apply to proceedings taken under this section.

Saving of rights of Port and Haven Commissioners.

25. Nothing in this Order contained shall authorise the corporation to do any act or thing in connection with the works authorised by this Order so as in any manner to prejudicially affect or interfere with the haven of Great Yarmouth or the navigation thereof and nothing in this Order shall take away lessen prejudice or alter any of the estates rights interests jurisdictions powers authorities or privileges of the Great Yarmouth Port and Haven Commissioners.

Saving rights under Crown Lands Act 1866.

26. This Order shall not be taken as a consent to the surrender of any rights interests powers authorities or privileges transferred to the management of the Board of Trade by the Crown Lands Act 1866 nor shall any works under this Order be commenced within the limits affected by any such rights interests powers authorities or privileges without the assent of the Board of Trade having been first obtained.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.